



CHAPTER clxxx.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Tramways Act 1870 relating to Altrincham Urban District Council Tramways Calverley Urban District Council Tramways Crompton Urban District Council Tramways Plymouth Corporation Tramways Rochdale Corporation Tramway Royton Urban District Council Tramways and Wardle Urban District Council Tramway. [15th August 1904.]

A.D. 1904.

WHEREAS under the authority of the Tramways Act 1870 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act annexed :

33 & 34 Vict.
c. 78.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Act and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Tramways Orders Confirmation (No. 1) Act 1904.

Short title.

2. The several Orders as amended and set out in the schedule to this Act annexed shall be and the same are hereby confirmed

Confirmation
of Orders in
schedule.

A.D. 1904. — and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the dates of the same respectively shall be the date of the passing of this Act.

SCHEDULE.

LIST OF ORDERS.

ALTRINCHAM URBAN DISTRICT COUNCIL TRAMWAYS.—Order authorising the Urban District Council of Altrincham in the County of Chester to construct tramways in their district.

CALVERLEY URBAN DISTRICT COUNCIL TRAMWAYS.—Order authorising the Urban District Council of Calverley to construct tramways in their district and for other purposes.

CROMPTON URBAN DISTRICT COUNCIL TRAMWAYS.—Order authorising the Urban District Council of Crompton to construct the tramways in their district authorised by the Crompton Urban District Council Tramways Order 1901.

PLYMOUTH CORPORATION TRAMWAYS.—Order authorising the Mayor Aldermen and Burgesses of the borough of Plymouth to construct additional tramways in their borough.

ROCHDALE CORPORATION TRAMWAY.—Order authorising the Mayor Aldermen and Burgesses of the borough of Rochdale to construct an additional tramway in their borough.

ROYTON URBAN DISTRICT COUNCIL TRAMWAYS.—Order authorising the Urban District Council of Royton to construct the tramways in their district authorised by the Royton Urban District Council Tramways Order 1901.

WARDLE URBAN DISTRICT COUNCIL TRAMWAY.—Order authorising the Urban District Council of Wardle to construct a tramway in their district and for other purposes.

ALTRINCHAM URBAN DISTRICT COUNCIL.

A.D. 1904.

*Order authorising the Urban District Council of Altrincham in the
County of Chester to construct Tramways in their District.*

Altrincham
Urban District
Council.

Preliminary.

1. This Order may be cited as the Altrincham Urban District Council Short title.
Tramways Order 1904.

2. The provisions of the Lands Clauses Acts (except with respect to the Incorporation
of Acts.
purchase and taking of lands otherwise than by agreement and with respect
to the entry upon lands by the Promoters of the undertaking) and of the
Tramways Act 1870 are hereby incorporated with this Order except where
the same are inconsistent with or expressly varied by this Order.

3. The several words terms and expressions to which by the Acts in Interpretation.
whole or in part incorporated with this Order meanings are assigned have
in this Order the same respective meanings :

Provided that in this Order—

The expression "the tramways" means the tramways and works by
this Order authorised or (as the case may be) any part thereof:

The expression "the undertaking" means the undertaking by this
Order authorised :

The expression "the district" means the urban district of Altrincham
in the county of Chester :

The expression "the council" means the Urban District Council of
Altrincham :

The expression "mechanical power" includes steam electrical and every
other motive power not being animal power and the word "engine"
includes motor.

4. The council shall be the Promoters for the purposes of this Order Promoters.
and are in this Order referred to as "the Promoters."

5. The Promoters may—

Lands.

(A) subject to the sanction of the Local Government Board and
under such conditions as they may prescribe from time to time
appropriate and use for any of the purposes of this Order but
subject to the provisions (if any) under which such lands were
respectively acquired any lands from time to time vested in
them :

(B) by agreement from time to time purchase and acquire for the
purposes of the undertaking such lands as they may require
and may from time to time sell let or dispose of any such
lands which may not be necessary for such purposes Provided
that all sums received by the Promoters from the sale of such
lands or from fines or premiums on leases of the same shall

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 EDW. 7.]
Act, 1904.

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be applied solely in repayment of outstanding loans and that such moneys shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board :

Provided that they shall not at any time hold for such purposes more than five acres of land Provided always that nothing in this Order shall exonerate the Promoters from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands appropriated or taken under the powers of this section.

Construction of Tramways.

Construction
of tramways.

6. The Promoters may subject to the provisions of this Order —

(A) construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order as the same have been amended previous to the passing of the Act confirming this Order (which plans and sections so amended as aforesaid are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramways hereinafter described with all proper rails points plates sleepers channels junctions turntables turn-outs cross-overs passing-places works and conveniences connected therewith and for the purposes thereof :

(B) erect or construct on any lands taken or appropriated under the powers of this Order any offices stables sheds carriage-houses engine-houses boiler-houses and dynamo-houses workshops stores waiting-rooms or other buildings yards works and conveniences for the purposes of the undertaking :

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

The tramways will be wholly situate within the district and are as follows (that is to say) :—

Tramway No. 1 On Manchester Road Commencing at the parish boundary in the centre of the bridge carrying Manchester Road over Timperley Brook known as Smith's Bridge and terminating at a point opposite the intersection of the southerly side of Salisbury Road with Manchester Road :

This tramway will be a single line throughout with a total length of 1 furlong 8·25 chains.

Tramway No. 2 On Manchester Road Commencing at the termination of Tramway No. 1 and terminating at a point 0·2 chain to the north

[4 EDW. 7.] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
Act, 1904.

of the line of intersection of the northerly side of Barrington Road with Manchester Road (partly double and partly single):

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This tramway will be double throughout except for a distance of 4.45 chains between points 2 chains northwards and 2.45 chains southwards of the centre of the bridge carrying the road over the Bridgewater Canal and for a distance of 10.80 chains between points 5.35 chains northwards and 5.45 chains southwards of the line of intersection of the centre of Gladstone Road with Manchester Road. At these two places the tramway will be single line:

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The length of double line will be 1 furlong 6.00 chains and of single line 1 furlong 5.25 chains total 3 furlongs 1.25 chains.

Tramway No. 3 On Manchester Road and Barrington Road Commencing at the termination of Tramway No. 2 and terminating at a point 0.3 chain southwards of the line of intersection of the centre line of Sandiway Road with Barrington Road:

This tramway will be single throughout and its total length will be 1 furlong 9.3 chains.

Tramway No. 4 On Manchester Road and Sandiway Road Commencing at the junction of Tramways Nos. 2 and 3 and terminating by a junction with Tramway No. 3 at its termination:

This tramway will be single throughout and its total length will be 2 furlongs 2.6 chains.

Tramway No. 5 On Barrington Road Stamford New Road and Railway Street Commencing at the junction of Tramways Nos. 3 and 4 and terminating at a point 1 chain to the south of the lamp pillar at the intersection of Railway Street Ashley Road and the Downs (partly double and partly single):

This tramway will be a single line throughout except at the following places where it will be double (A) In Barrington Road for a distance of 3 chains between points 2.25 chains and 5.25 chains northwards of the line of intersection of the centre of Woodlands Road with Barrington Road (B) In Stamford New Road for a distance of 3 chains south-westwards from the southerly end of Barrington Road along Stamford New Road (C) In Stamford New Road for a distance of 3 chains between points 2 chains north-eastward and 1 chain south-westward of the line of intersection of the north-easterly side of Moss Lane with Stamford New Road (D) In Railway Street for a distance of 7.5 chains between points 1.5 chains north-eastwards and 6 chains south-westwards of the line of intersection of the centre of Regent Road with Railway Street:

The length of double line will be 1 furlong 6.50 chains and of single line 3 furlongs 7.00 chains total 5 furlongs 3.50 chains.

7. The following provisions for the protection of the county council of the administrative county of the county palatine of Chester (in this section called "the county council") and the inhabitants of the said county shall

For protection
of Cheshire
County
Council.

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 EDW. 7.]
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A.D. 1904. notwithstanding anything in this Order contained and unless otherwise
agreed in writing between the county council and the Promoters apply and
Altrincham have effect :—
Urban District Council.

(1)—(A) Before any tramway by this Order authorised to be laid in or along any main road which expression in this section includes the carriage-way and footway of any bridge forming part of or leading to any main road within the said administrative county is opened for public traffic the Promoters shall at their own expense widen the main roads along which such tramway shall be laid to a width throughout of not less than thirty-three feet of metalled carriage-way where the tramway is to be laid as a double line or at any passing place on a single line and twenty-seven feet of metalled carriage-way where it is to be laid as a single line except at passing places in addition to the existing width of footpath save and except that where owing to there being buildings opposite each other on both sides of the road the cost of purchasing land for such widening would be unreasonably excessive the Promoters shall on obtaining a certificate of exemption from the county council under the hand of their clerk be exempt from the obligation of this section. Provided nevertheless that so much of the carriage-way of the main road along which Tramway No. 1 is to be laid and as is situate in the district shall be widened to a width of sixteen and a half feet by reducing (but so far only as is necessary for that purpose) the width of the footway and such tramway shall be laid and maintained in such position as to allow a space of nine feet six inches and no more between the outer edge of the kerb and the centre of the nearest rail and no part of the said tramway shall be laid until the carriage-way of the said road has been widened to a width of thirty-three feet throughout the entire length of the tramway. Any difference or dispute between the Promoters and the county council which may arise as to whether such certificate should be given or otherwise in respect of this section shall be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board but in every case the costs of and in connection with such arbitration shall be paid by the Promoters ;

(B) The Promoters shall at their own expense pave or metal as the case may be the widened portion of the carriage-way and footpath (if any) with the same class of pavement or metalling as existed before the widening was made :

(2) A double line of rails shall not be laid where a single line is shown on the deposited plans without the written consent of the county council :

(3) The Promoters shall at their own expense and to the satisfaction of the county council pave so much of any main road whereon any

[4 Edw. 7.] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
Act, 1904.

of the tramways are laid as lies between the rails of the tramway and (where two lines of tramway are laid by the Promoters in any such road) the portion of the road between such two lines of tramway and so much of the main road along which Tramway No. 1 is to be laid as lies between the boundary of the district and the nearest rail of the tramway and in every case so much of the road as extends eighteen inches beyond the rails of and on each side of any such tramway with such granite cubes or setts or other paving as the county council may reasonably approve and in all cases where the nearest rail of such tramway is of less distance than seven feet from the outer edge of the footpath or boundary of the carriage-way on either side the intervening spaces between the rail and footpath or boundary of the carriage-way shall be paved in like manner to the reasonable satisfaction of the county council and the Promoters shall so long as they shall work the said tramway keep and maintain the same respectively in good repair and condition and all works and materials used in the construction maintenance or alteration of the said roads lying adjacent to the said tramways shall be reasonably approved by the county council and in the event of any subsequent deviation or alteration of the said tramways the consent of the county council shall be obtained before such deviation or alteration is made :

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Urban District
Council.

- (4) The Promoters may make any alteration in the levels of any main road with the consent of the county council which consent shall not be unreasonably withheld and any such alteration to which the county council shall consent together with any such other alteration which the county council shall consider necessary in restoring and re-forming the carriage-ways or footways to meet the altered levels and conditions consequent upon the construction of the tramways shall be carried out in such manner as the county council may approve by and at the expense of the Promoters :
- (5) Before the Promoters lay any tramway upon along or across any county or hundred bridge or the approaches thereto repairable by the county council they shall at their own expense and in accordance with plans sections and specifications to be first approved by the county surveyor and to his satisfaction widen such bridge and its approaches so as to secure a carriage-way of the minimum width of twenty-seven feet in addition to the existing width of footpaths in case the tramway is laid as a single line and a carriage-way of a minimum width of thirty-three feet in addition to the existing width of footpaths if the tramway is laid as a double line :
- (6) In constructing the tramway upon or over any such bridge or the approaches thereto the Promoters shall not alter or interfere with the structure of such bridge or approaches unless such

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 Edw. 7.]
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alteration or interference with the construction of such bridge or approaches be absolutely necessary for the purpose of constructing the tramway and in the event of any such alteration or interference the Promoters shall together with the prescribed notice submit to the county council detailed drawings and specifications showing the proposed work as affecting such bridge and approaches and the Promoters shall so construct and maintain the tramway in the road over such bridge and forming the approaches thereto as not to injuriously affect such bridge or approaches and in the event of any injury being occasioned to such bridge or approaches or any part or parts thereof respectively by the construction of the tramway on or over the same (whether such injury shall occur during or after construction or in the maintenance of the tramway) the county council after giving seven days' written notice to the Promoters except in cases of emergency of their intention so to do may restore such bridge and approaches or the part or parts thereof which may be injured to as good a state as they were in before such injury was occasioned at the expense of the Promoters and the Promoters shall upon demand repay to the county council all reasonable expenses which they may be put to in restoring such bridge and approaches and in maintaining and repairing so much of the road over such bridge and approaches as the Promoters are liable to repair under this Order and the county council may recover from the Promoters all such expenses so due as aforesaid :

- (7) In the event of mechanical power being used on that portion of the tramway which is laid on any such bridge or approaches the county council may execute such works as may be agreed between them and the Promoters (or in case of difference between them as may be determined by the Board of Trade) to be necessary for the strengthening of the fabric of such bridge provided such strengthening is needed for and by reason of the tramway apart from the ordinary traffic on the road in question and the county council may execute all works agreed or determined as aforesaid at the expense of the Promoters and the county council may recover from the Promoters all moneys reasonably expended by them in the execution of such works as aforesaid. If it becomes necessary for effecting such strengthening that the working of any portion of the tramway be wholly or in part stopped or delayed and the county council give the Promoters three clear days' notice in writing requiring such stoppage or delay the working of such portion of the tramway shall be stopped or delayed accordingly but only for so long as may be necessary for effecting such strengthening and the county council shall not be liable for any claims damages or expenses in respect of such stoppage or delay :

[4 EDW. 7.] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
Act, 1904.

- (8) Nothing herein contained shall tend to lessen or control any right power or authority now vested in the county council for altering widening or rebuilding any such bridge or approach but all such rights powers and authorities shall remain in as full force as if this Order had not been made and the county council shall not be liable to make any compensation whatever for any damage or injury to the tramways by the altering widening or rebuilding any such bridge or approach thereto Provided that in altering or rebuilding any such bridge or the approach the county council may require the Promoters to alter the tramway in such manner as the circumstances of the case may reasonably require but nothing shall be done to impede or interfere with the tramway for any greater length of time than may be reasonably necessary for the execution of the works :
- (9) The Promoters shall not execute any work in or affecting or otherwise interfere with any such main road bridge or approach otherwise than subject to such regulations and conditions for the accommodation of traffic and otherwise as the county council may from time to time prescribe :
- (10) The Promoters shall not without the consent in writing of the county council (which consent shall not be unreasonably withheld) place erect or attach any post or other support for any wire on or to the structure of any such bridge as aforesaid and shall on receiving three months' notice in writing (which notice shall not be given unreasonably) remove any post or support which shall be so placed erected or attached as aforesaid :
- (11) The Promoters shall on demand pay to the county council the reasonable costs which may be incurred in the repair and reinstatement of so much of any such main road including the roadway over any such bridge and approach upon or along which any tramway shall be laid as may be injured or damaged by reason of the traffic being concentrated thereon during the construction alteration or repair of such tramway :
- (12) Any paving metalling or other material excavated by the Promoters from any main road whereon the tramway is laid may subject to the provisions of subsection (3) be applied by the Promoters in or towards the construction of the tramways the reinstating of such road or the maintenance thereof for six months after the completion of the tramway and the Promoters shall deliver the surplus paving metalling or other material not used for the purposes aforesaid at such place not being more than one mile from the place of excavation as the county council shall appoint :
- (13) For the purposes of this section the expression "the tramway" shall include posts cables and all other electrical appliances connected with or used with the tramway lines :

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Council.*

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Council.*

(14) If any difference (except such as is to be determined by the Board of Trade as hereinbefore provided) shall arise under this section between the Promoters and the county council the matter in difference shall unless otherwise agreed be determined by a person to be nominated by the Board of Trade and the provisions of this Order as to arbitration shall apply accordingly.

For protection
of London and
North Western
Railway Com-
pany.

8. The following provisions for the protection of the London and North Western Railway Company (hereinafter referred to as "the North Western Company") shall unless otherwise agreed in writing between the North Western Company and the Promoters apply and have effect:—

(1) In the event of the tramways being worked by electricity on the overhead wire system no stays posts wires or other apparatus shall without the previous consent in writing of the North Western Company be attached to any bridge or other work of that Company and the Promoters shall if and when the North Western Company require to repair or paint the bridge carrying their railway over Manchester Road Broadheath in order to ensure the safety of the workmen employed in such repairing or painting cut off the electric current from the trolley wires under such bridge at such times as shall be reasonably required by the principal engineer of the North Western Company unless the Promoters shall have previously adopted some other means of protection to workmen which shall have been approved by the said principal engineer:

(2) If any difference shall arise under this section between the Promoters and the North Western Company touching anything to be done or omitted to be done or not to be done or the reasonableness of any requirements or in any manner in connection with the foregoing provisions of this section the matter in difference shall unless otherwise agreed be determined by a person to be nominated by the Board of Trade and the provisions of this Order as to arbitration shall apply accordingly.

For protection
of North Che-
shire Water
Company.

9. Notwithstanding anything contained in this Order the following provisions for the protection and benefit of the North Cheshire Water Company (in this section referred to as "the water company") shall except so far as may be otherwise agreed between the Promoters and the water company apply and have effect:—

(1) During the construction of the tramways the Promoters shall deviate in such places to such extent and in such manner as the engineer of the water company may certify in writing to be necessary for avoiding interference with any mains pipes or apparatus (all of which are in this section included in the expression "mains") belonging to the water company:

(2) Whenever in the execution of the powers contained in this Order or in section 30 of the Tramways Act 1870 it shall be necessary

[4 Edw. 7.] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
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to lower alter interfere with or disturb any mains belonging to the water company such lowering alteration interference or disturbance shall be effected by and under the direction of the water company and where the main to be lowered altered interfered with or disturbed is constructed in or over a bridge the water company may if they think fit reconstruct the same on a pipe bridge and for that purpose may acquire all necessary rights easements and conveniences for and in respect of the construction repair and renewal of such pipe bridge and of such main and for obtaining access thereto and all expenses incurred by the water company in pursuance of this subsection shall be repaid to them by the Promoters :

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*Altrincham
Urban District
Council.*

- (3) The cost of constructing providing and laying any new mains in substitution for any which may be rendered useless by the construction or user of the tramways and the value of any mains belonging to or under the control of the water company rendered useless or unproductive to them by the works authorised by this Order shall be paid by the Promoters to the water company :
- (4) When under the foregoing provisions of this section new mains shall be laid down in the place of existing mains the water company may use mains of dimensions larger than those of the existing mains but the Promoters shall (unless the increased dimensions are rendered necessary by reason of the construction or use of the tramways) only be required to pay the expenses which would have been incurred by the substitution of mains of dimensions equal to those of the existing mains :
- (5) The water company shall not be liable for and the Promoters shall indemnify the water company against all loss to the Promoters by reason of suspension of traffic and all accidents damages or injuries to the tramways works and property of the Promoters and to the persons and property conveyed on or using the same which may either by the construction of the works of the Promoters or at any time thereafter in consequence thereof be caused by the bursting breaking or leakage of or escape of water from any main of the water company crossing or being underneath (either wholly or partially) or near to any tramway or work of the Promoters or which may have been affected by the works of the Promoters unless such damage or injury shall have arisen as the consequence of any act or default of the water company their officers or servants Provided always that the water company shall at the cost of the Promoters and without unnecessary delay execute and do all things necessary to make good any such bursting breaking leakage or escape :
- (6) Where a distance from the upper side of any main or pipe belonging to the company to the lowest part of the rail of the tramway is less than two feet such main or pipe shall be lowered by

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 EDW. 7.]
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Urban District
Council.

the company at the expense of the Promoters so as to leave a distance of not less than two feet between the upper side of such pipe and the lowest part of such rail :

- (7) At any point or points where the tramways or any of them cross a main or pipe belonging to the water company the Promoters shall at their own expense and to the reasonable satisfaction of the engineer for the time being of the water company lay and thereafter keep and maintain to the like satisfaction underneath each rail and immediately over such main or pipe a bed of asphalt or other insulating material to be approved by the said engineer of not less than two feet wide by six inches thick and of a length extending two feet beyond such main or pipes on each side thereof :
- (8) If by reason or in consequence of any works of street widening carried out upon the lands by this Order authorised to be acquired or by reason or in consequence of the reduction of the width of any footpath any main pipe or apparatus belonging to the water company and now laid underneath any existing footpath shall be brought underneath the roadway the water company shall at the expense of the Promoters move such main pipe or apparatus so as to place the same under the new footpath or into some other position approved by the engineer of the water company :
- (9) The water company shall not be responsible to the Promoters for any damage the Promoters may sustain by reason of the Promoters having to repair or relay their lines from time to time in consequence of the road subsiding after the construction relaying enlarging examining or repairing of any water main pipe or apparatus has been completed and the ground above the same filled in Provided such work shall have been executed with all care and in a proper and workmanlike manner :
- (10) The Promoters shall be liable for any loss or damage to the mains of the water company resulting from fusion or electrolytic action caused by any currents generated or used for the purpose of electric traction on any of the tramways by this Order authorised :
- (11) All and singular the sums of money hereinbefore provided to be paid by the Promoters to the water company may be recovered by them by all and the same means as any simple contract debt :
- (12) If any difference shall arise between the Promoters and the water company under this section the matter in difference shall unless otherwise agreed be determined by a person to be nominated by the Board of Trade and the provisions of this Order as to arbitration shall apply accordingly :
- (13) The water company and the Promoters may by agreement under seal alter or modify any of the provisions of this section.

[4 EDW. 7.] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
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10. The following provisions for the protection of the Altrincham Gas Company (hereinafter called "the gas company") shall apply and have effect:—

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*Altrincham
Urban District
Council.*

For protection
of Altrincham
Gas Company.

- (1) During the construction of the tramways the Promoters may deviate in such places to such extent and in such manner as the engineer for the time being of the gas company may certify in writing to be necessary for avoiding interference with any main pipe or apparatus belonging to the gas company:
- (2) Sections 30 32 and 33 of the Tramways Act 1870 shall apply to the gas company with reference to the gas mains pipes and apparatus belonging to them in like manner as the same apply to a company or person being the owner of gas mains or pipes Provided that all works or interference with any main pipe or apparatus of the gas company under section 30 of the Tramways Act 1870 or otherwise shall be made and executed by the gas company and not otherwise upon the request and at the cost of the Promoters:
- (3) The cost of constructing providing and laying any new main pipe or apparatus in substitution for any which may be rendered useless by the construction of any of the tramways and the value of any main pipe or apparatus belonging to the gas company rendered useless or unproductive to the gas company by any of the works authorised by this Order shall on demand and subject to credit being given for the value of the aforesaid matters so rendered useless to the gas company be repaid to the gas company by the Promoters Provided always that whenever any new main or pipe of larger dimensions shall be substituted for any existing main or pipe the Promoters shall only be required to pay the cost which would have been incurred by the substitution of a main or pipe of equal dimensions with the existing main or pipe:
- (4) If by reason or in consequence of any authorised deviation it shall become necessary to lower or raise any main pipe or apparatus of the gas company such lowering or raising shall be carried out by the gas company at the expense of the Promoters The question whether any such main pipe or apparatus requires to be lowered or raised shall be decided by the engineer of the gas company:
- (5) Where a distance from the upper side of any main or pipe belonging to the gas company to the lowest part of the rail of the tramway is less than two feet such main or pipe shall be lowered by the gas company at the expense of the Promoters so as to leave a distance of not less than two feet between the upper side of such pipe and the lowest part of such rail:
- (6) At any point or points where the tramways or any of them cross a main or pipe belonging to the gas company the Promoters shall at their own expense and to the reasonable satisfaction of

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the engineer for the time being of the gas company lay and thereafter keep and maintain to the like satisfaction underneath each rail and immediately over such main or pipe a bed of asphalt or other insulating material to be approved by the said engineer of not less than two feet wide by six inches thick and of a length extending two feet beyond such main or pipe on each side thereof:

- (7) If by reason or in consequence of any works of street widening carried out upon the lands by this Order authorised to be acquired or by reason or in consequence of the reduction of the width of any footpath any main pipe or apparatus belonging to the gas company and now laid underneath any existing footpath shall be brought underneath the roadway the gas company shall at the expense of the Promoters move such main pipe or apparatus so as to place the same under the new footpath or into some other position approved by the engineer of the gas company:
- (8) The gas company shall not be liable for and the Promoters shall indemnify the gas company against all loss to the Promoters by reason of suspension of traffic and all accidents damages or injuries to the tramways works and property of the Promoters and the persons and property being conveyed on or using the same and all actions suits and costs in respect thereof which may either during the progress of the works of the Promoters or at any time hereafter be caused by the bursting breakage or leakage of or escape of gas from any main or pipe of the gas company crossing or being underneath (either wholly or partially) or near to any tramway or work of the Promoters or which may have been affected by the works of the Promoters unless such damage or injury shall have arisen as the consequence of any wilful act or default of the gas company or their officers or servants:
- (9) The gas company shall not be responsible to the Promoters for any damage the Promoters may sustain by reason of the Promoters having to repair or relay their lines from time to time in consequence of the road subsiding after the construction relaying enlarging examining or repairing of any gas main pipe or apparatus has been completed and the ground above the same filled in Provided such work shall have been executed with all care and in a proper and workmanlike manner:
- (10) The Promoters shall so construct and isolate their pipes conduits boxes and other apparatus as to render the same impervious to the access of gas and the gas company shall not be responsible for and the Promoters shall indemnify the gas company against any damage to property or person resulting from the leakage of gas from the mains or pipes of the gas company into the pipes conduits boxes or other apparatus of the Promoters if

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it shall be proved to the satisfaction of an arbitrator to be appointed as hereinafter mentioned that such leakage into the pipes conduits boxes or other apparatus of the Promoters was attributable to the same not having been so constructed and isolated as to be impervious to the access of gas And the Promoters shall make good at their own cost any damage to their own and surrounding property that may be caused by any explosion of gas collected in any of their conduits pipes boxes or other apparatus:

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- (11) The Promoters shall make full compensation for any loss or damage which may occur to any mains pipes and apparatus by fusion or electrolytic action caused by the exercise of any of the powers of this Order conferred upon the Promoters :
- (12) If any difference shall arise between the gas company and the Promoters under this section or as to anything to be done or not to be done thereunder the matter in difference shall unless otherwise agreed or otherwise expressly provided by this section be determined by a person to be nominated by the Board of Trade and the provisions of this Order as to arbitration shall apply accordingly :
- (13) The gas company and the Promoters may by agreement under seal alter or modify any of the provisions of this section.

11. For the protection of the Cheshire Lines Committee (in this section called "the committee") the following provisions shall notwithstanding anything contained in this Order apply to and be binding on the Promoters in the exercise of the powers of this Order :—

For protection
of Cheshire
Lines Com-
mittee.

- (1) All works by this Order authorised where the same will be made under any bridge or other work belonging to or maintainable by the committee or will otherwise interfere with the same shall be executed so as not to interfere with the structure of any such bridge or other work and according to plans sections and specifications to be previously submitted to and approved by the committee or in case of difference between them and the Promoters by an arbitrator to be appointed as hereinafter provided All such works shall be executed and thereafter maintained by the Promoters according to the plans sections and specifications so approved and under the superintendence and to the satisfaction of the committee The Promoters shall so construct maintain and use the tramways as not to injuriously affect any such bridge or other work and in the event of any injury being occasioned to such bridge or work by the construction maintenance or user of the tramways under the same the committee may make good the injury and may recover from the Promoters the reasonable expense of so doing :

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- (2) The Promoters shall on demand pay to the committee the reasonable expense of the employment by the committee during the execution or repair by the Promoters under this Order of any work affecting any bridge railway siding or other work belonging to the committee of a sufficient number of inspectors watchmen and signalmen to be appointed by the committee for preventing all interference obstruction danger and accident from any of the operation or from the acts or default of the Promoters or their contractors or any person in the employment of either of them or otherwise :
- (3) The Promoters shall not in any manner in the execution maintenance user or repair of any of their works obstruct or interfere with the free uninterrupted and safe user of any railway siding or other work belonging to the committee or any traffic thereon :
- (4) The Promoters shall be responsible for and make good to the committee all losses damages and expenses which may be occasioned to the committee or any of their works or property or to the traffic on their railways or to any company or person using the same or otherwise by or by reason of the execution or failure of any of the intended works or by reason of any act or default or omission of the Promoters or of any person in their employment or of any contractors for the works authorised by this Order or otherwise and the Promoters shall effectually indemnify and hold harmless the committee from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :
- (5) Whenever the committee shall hereafter require to widen lengthen strengthen reconstruct alter or repair any such bridge or approaches thereto or to widen or alter their railway the Promoters shall afford to the committee all reasonable and proper facilities for those purposes or any of them and if the committee shall find it necessary for any such purposes that the working or user of any portion of the tramway under such bridge shall be wholly or in part stopped or delayed or that such portion of the tramways by this Order authorised shall be wholly or in part taken up or removed and the committee shall give to the Promoters seven days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such portion of the tramways shall be stopped or delayed or such portion of the tramway shall be taken up or removed as stated in such notice at the reasonable expense of the Promoters and under their superintendence if they shall give such superintendence but the working or user of such portion shall not be stopped or delayed for a longer period than may be

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absolutely necessary for effecting such purposes as aforesaid and such portion of the tramway shall be restored with all possible despatch and the committee shall not be liable for any compensation claims damages or expenses in respect of such stoppage delay or taking up or removal as aforesaid :

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- (6) Any additional expense in the maintenance of any such bridge or other work occasioned to the committee by the construction or user of the tramways by this Order authorised shall be borne by the Promoters :
- (7) Whenever any of the tramways by this Order authorised on either side of any of the committee's bridges under which the said tramways are laid or intended to be laid is a single line there shall only be a single line under such bridge and no turn-outs or passing places shall be constructed thereunder :
- (8) The Promoters shall not alter the level of the approaches to or roadway under any bridge belonging to or maintainable by the committee or the level of any road so as to affect the access to any premises of the committee without in either case the consent in writing of the committee which consent shall not be unreasonably withheld :
- (9) In the event of the tramways by this Order authorised being worked by electricity on the overhead system no stays posts wires or other apparatus shall without the previous consent in writing of the committee be attached to any bridge house building property or other work belonging to or maintainable by the committee :
- (10) If having regard to the proposed position of any works of the Promoters by this Order authorised when considered in relation to the position of the works of the committee at any point where the tramways by this Order authorised will be constructed under any railway of the committee it becomes advisable in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus of the committee shall be altered the committee may execute any works reasonably necessary for such alteration and the reasonable expenses of executing such works shall be borne by the Promoters :
- (11) The Promoters shall not stop or permit to be stopped any engine carriage or other vehicle used on the tramways in front of or opposite to the entrance to any station or goods yard belonging to or maintainable by the committee except only for so long as may be reasonably necessary for the purposes of discharging or taking up passengers or in case of emergency or to meet the requirements of the Board or Trade :

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(12) If any difference shall arise between the Promoters and the committee as to the reasonableness of the requirements of the committee or their engineer or as to the execution of any works provided for by this section or as to any other matter arising under this section the same shall be settled by arbitration by an arbitrator to be appointed by the Promoters and the committee or if they cannot agree then by an arbitrator to be appointed by the Board of Trade.

*Access to
Manchester
South Junction and
Altrincham
Railway Company's stations
not to be
obstructed.*

12. It shall not be lawful for the Promoters or their lessees in working the tramways to stop or permit to stop any engine carriage or other vehicle used on the tramways in front of or opposite to the entrance to any station or goods yard belonging to or maintainable by the Manchester South Junction and Altrincham Railway Company so as to impede the free access to or egress therefrom for passengers carts and carriages except only for so long as shall be reasonably necessary for the purposes of discharging and taking up passengers or in case of emergency or to meet the requirements of the Board of Trade.

*Gauge and
width of
carriages.*

13.—(1) The tramways shall be constructed on a gauge of four feet eight and a half inches or such other gauge as may from time to time be determined by the Board of Trade on the application of the Promoters.

(2) In the event of the tramways being constructed on a less gauge than four feet eight and a half inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramways beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed six feet in width or such other width as may from time to time be prescribed by the Board of Trade.

*Railway trucks
not to be run
on tramways.*

14. Carriages or trucks adapted to run on railways shall not be run upon the tramways.

*Provisions as
to construction
of tramways.*

15. In addition to the requirements of section 26 of the Tramways Act 1870 the Promoters shall lay before the Board of Trade a plan showing the proposed mode of constructing laying down or renewing the tramways and a statement of the materials intended to be used therein and the Promoters shall not commence the construction laying down or renewal of any of the tramways except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and in places where the Promoters are not the sole road authority under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by the said section.

*Rails of tram-
ways.*

16. The rails of the tramways shall be such as the Board of Trade may approve.

*Penalty for not
maintaining
rails and road
in good con-
dition.*

17.—(1) The Promoters shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which

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the same rest and if the Promoters at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds and to a penalty not exceeding five pounds for every day on which such non-compliance continues.

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(2) In case it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the district that the Promoters have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Promoters to such penalty or penalties in respect thereof as is or are by this section imposed.

18. If the Promoters or any other road authority hereafter alter the level of any road along or across which any part of the tramways is laid or authorised to be laid the Promoters shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Tramways to
be kept on level
of surface of
road.

19. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Promoters shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Cross-overs to
be constructed
in certain cases.

20.—(1) The Promoters may subject to the provisions of this Order with the consent of the Board of Trade make maintain alter and remove all such cross-overs passing-places sidings triangles junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or any of them or for facilitating the traffic of the roads in which the same are laid or for providing access to any stables or carriage-houses sheds or works of the Promoters or for connecting any portions of any such tramways or for providing access to or for forming connections with any generating or other stations engines machinery or apparatus or for or in connection with standing places in any street or road contiguous to the tramways or for effecting junctions with any tramways or light railways.

Additional
cross-overs &c.
may be made
where neces-
sary.

(2) Notwithstanding anything shown on the deposited plans the Promoters may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing ones or single lines in lieu of double or interlacing ones or interlacing lines in lieu of double or single lines on the tramways and may with the like consent alter the position in the road of any

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A.D. 1904. of the tramways or any part thereof respectively Provided that the uppermost surface thereof shall be on a level with the surface of the road as altered or widened.

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(3) If in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Promoters shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not be so laid if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Promoters within three weeks after receiving notice from the Promoters express their objection thereto.

(4) In places where the Promoters may not be the road authority the construction of any works under this section shall be subject to the approval of that authority.

Temporary
tramways may
be made when
necessary.

21. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the tramways are laid it is in the opinion of the Promoters necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Promoters may construct and lay down temporarily or permanently in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so altered removed or discontinued subject in places in which the Promoters may not be the road authority to the approval of the road authority and to such regulations as that authority may make.

Application of
road materials
excavated in
construction of
works.

22. Any paving metalling or material excavated by the Promoters in the construction of any works under the authority of this Order from any road under the jurisdiction or control of any road authority other than the Promoters may be applied by the Promoters so far as may be necessary in or towards the construction of the tramways the reinstating of the road and the maintenance for six months after the completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Promoters are by this Order required to maintain and the Promoters shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of such road authority or to such person as he may appoint to receive the same at such place as he may direct Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit Any difference between the Promoters and any road authority or surveyor

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or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party.

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23. The tramways shall not be opened for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade.

Tramways not
to be opened
until certified
by Board of
Trade.

Motive Power.

24. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

Provisions as
to motive
power.

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade:

(2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramways and for regulating the use of electrical power:

(3) The Promoters or any person using any mechanical power on the tramways contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof:

(4) The Board of Trade if they are of opinion—

(A) that the Promoters or such person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(B) that the use of mechanical power as authorised under this Order is a danger to the passengers or the public; may by order either direct the Promoters or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Promoters or such person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

25. For the purpose of working the tramways by mechanical power the Promoters and their lessees subject to the provisions of this Order (and as to the lessees subject to the terms of their lease) may—

Mechanical
power works.

(A) construct provide maintain and use on any lands appropriated or acquired by them under the provisions of this Order stations for generating electrical power with all necessary or proper machinery dynamos engines buildings works and conveniences:

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(B) place construct erect lay down make and maintain on in under or over the surface of any street or road within the district posts poles brackets electric conductors wires apparatus subways tunnels cables tubes and openings :

(c) with the consent of the owners and occupiers of any building within the district attach to such building and maintain posts brackets electric conductors wires and apparatus.

Mechanical
power works
to be subject
to Tramways
Act 1870.

26. All works to be executed by the Promoters or their lessees in any street or road for working the tramways by mechanical power in pursuance of the powers of this Order shall be deemed to be works of a tramway subject in all respects (save as by this Order otherwise expressly provided) to the provisions of the Tramways Act 1870 as in this Order incorporated as if they had been therein expressly mentioned Provided always that nothing in this Order contained shall authorise the opening or breaking up of any road outside the district.

Byelaws.

27. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any part of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say) :—

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages :

For regulating the emission of smoke or steam from engines used on the tramways :

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety :

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages :

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

Amendment of
Tramways Act
1870 as to bye-
laws by local
authority.

28. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaw sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which engines are to be driven or propelled on the tramways under the authority of this Order but the byelaws

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of the local authority may restrict the rate of speed to a lower rate than that so authorised. A.D. 1904.

29. The following provisions shall apply to the use of electrical power under this Order unless such power is entirely contained in and carried along with the carriages :—

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Special provisions as to use of electrical power.

- (1) The Promoters shall employ either insulated returns or uninsulated metallic returns of low resistance
- (2) The Promoters shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Promoters shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Promoters either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Promoters and any other party with respect to anything hereinbefore in this section contained

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such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :

- (7) In this section the expression "the Promoters" includes any person owning working or running carriages over the tramways.

For protection
of Postmaster-
General.

30.—(A) Notwithstanding anything in this Order contained if any of the works by this Order authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

(B) In the event of any tramways of the Promoters being worked by electricity the following provisions shall have effect :—

- (1) The Promoters shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking of the Promoters the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any

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difference which arises between the Postmaster-General and the Promoters as to any requirement so made shall be referred to arbitration :

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- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for the purposes of this Order at any of the works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by

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an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act :

(11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid :

(12) In this section the expression "the Promoters" includes any person owning working or running carriages over any of the tramways of the Promoters.

Traffic upon Tramways.

Traffic upon
tramways.

31. The tramways may be used for the purpose of conveying passengers animals goods minerals and parcels.

Promoters not
bound to carry
animals goods
&c.

32. The Promoters shall not be bound to carry unless they think fit any animals goods minerals or parcels other than passengers' luggage not exceeding twenty-eight pounds in weight.

Provisions as
to carriage of
animals goods
&c.

33. In case the Promoters' lessees carry animals goods minerals or parcels they may and when required by the council shall carry the same in separate carriages or separate parts of carriages set apart for that purpose Provided that this provision shall not apply to the carriage of passengers' luggage not exceeding twenty-eight pounds in weight.

Rates.

Passengers'
fares.

34. The Promoters' lessees may demand and take for every passenger travelling upon the tramways including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile and for this purpose a fraction of a mile shall be deemed a mile.

As to fares on
Sundays or
holidays.

35. The Promoters or any person working or using the tramways shall not take or demand on Sunday or any public holiday any higher rates or charges than those levied by them on ordinary week days.

Passengers'
luggage.

36. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof Provided that all such personal luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

Cheap fares
for labouring
classes.

37.—(1) The Promoters' lessees at all times after the opening of the tramways or any part thereof for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way over the whole of the trainways of the Promoters every morning and every evening (Sundays Christmas

[4 EDW. 7.] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
Act, 1904.

Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to or returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Promoters in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

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*Altrincham
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Council.*

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Promoters to provide such service as may appear to the Board to be reasonable.

(3) The Promoters' lessees shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

38. The Promoters may demand and take in respect of any animals goods minerals or parcels conveyed by them on the tramways including every expense incidental to such conveyance any rates or charges not exceeding the rates and charges specified in the schedule to this Order annexed subject to the regulations in that behalf therein contained.

Rates and
charges for
animals goods
&c.

39. The rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Promoters may by notice to be annexed to the list of rates and charges appoint.

Payment of
rates.

40. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the Promoters or by their lessees or by twenty inhabitant ratepayers of the district that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if such referee reports that it has been proved to his satisfaction that all or any of the rates or charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion thereof in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Order authorised Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Promoters or their lessees.

Periodical
revision of
rates.

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 EDW. 7.]
Act, 1904.

A.D. 1904.

Miscellaneous.

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Urban District
Council.*

*Power to
council to work
tramways.*

41. Notwithstanding anything in the Tramways Act 1870 to the contrary the Promoters may place and run carriages on and may work and may demand and take rates and charges in respect of the tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks horses harness engines machinery apparatus steam cable electrical and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the said tramways by animal or mechanical power and in such case the several provisions in this Order contained relating to the working of the tramways and the taking of rates and charges therefor shall extend and apply mutatis mutandis to and in relation to the Promoters and the Promoters may work such tramways and demand and recover such rates and charges accordingly but nothing in this section shall empower the council to construct any station for generating electrical power nor to create or permit a nuisance.

Regulations.

42. The regulations authorised by the Tramways Act 1870 to be made by the Promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the council be made by the council alone.

*Working
agreements.*

43. The Promoters may with the consent of the Board of Trade from time to time but subject to the provisions of this Order—

(1) enter into and fulfil contracts and agreements with any local authority or person who are authorised to enter into such contracts and agreements and are the owners or lessees of any tramways or light railways in the district or in any adjacent district which can be worked with any of the tramways of the council for and in relation to—

(A) The construction of the tramways by this Order authorised ;

(B) The lease working running over use maintenance and management by the contracting parties or any or either of them of the whole or any part of their respective tramways or light railways and works ;

(C) The formation of a junction or junctions between any of the tramways or light railways of the respective contracting parties ;

(D) The receiving or forwarding of any animals goods minerals or parcels coming from or destined for the respective undertakings of the contracting parties ;

(E) The fixing collecting and apportionment of rates charges and other receipts arising from such traffic :

(2) confirm any such contracts and agreements which may have been entered into before the confirmation of this Order.

[4 EDW. 7.] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
Act, 1904.

44. The Promoters on the one hand and any local authority or person having statutory power to supply electricity in the district on the other hand may with the consent of the Board of Trade enter into and carry into effect agreements for or with respect to all or any of the following purposes and all matters incidental thereto (that is to say):—

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Council.*

Agreements
as to supply
of electrical
energy.

(1) The supply to the Promoters by such local authority or person of electrical energy and power in bulk for the purpose of working the tramways which may for the time being be worked by the Promoters by electrical power under the foregoing provisions of this Order :

(2) The payments to be made or other consideration to be given in respect of any such supply.

45. The Promoters and any road authority may subject to the provisions of this Order and with the consent of the Board of Trade enter into any agreements with respect to the construction maintaining renewing repairing and using of the tramways situated within the district of such road authority and the rails plates sleepers and works connected therewith and the facilitating of the traffic over the same.

Agreements
with road
authorities.

46. The Promoters may include in any mortgage of the local rate made by them under section 20 of the Tramways Act 1870 the moneys coming to them out of the rents reserved under any lease made under the authority of the Tramways Act 1870 or this Order and the rates charges and sums authorised to be taken or received by them under the provisions of this Order.

Mortgages may
include rents.

47. All orders regulations and byelaws made and consents and certificates given by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board and when purporting to be so signed the same shall be deemed to be duly made in accordance with the provisions of this Order and to be orders and regulations within the meaning of the Documentary Evidence Acts 1868 and 1882 and may be proved accordingly.

Orders &c. of
Board of
Trade.

48. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction Acts.

Recovery of
penalties.

49. Section 58 of the Local Government Act 1894 shall apply to the accounts of the receipts and expenditure of the Promoters and of their committees and officers with respect to the tramways and the undertaking and to the audit thereof as if such accounts related to receipts and expenditure under the Public Health Act 1875.

Audit of
accounts.

50. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 is hereby incorporated with this Order and in construing that section for the purposes of this Order the expression "this Act" where used in that section shall mean this Order.

Protection of
local authority.

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 Edw. 7.]
Act, 1904.

A.D. 1904.

*Altrincham
Urban District
Council.*

Power to hold
patents.

Form and
delivery of
notices.

51. The Promoters may subject to the provisions of this Order (but only for the purposes of the undertaking and not so as to acquire any exclusive right therein) acquire hold and use any patent or other rights and any licences to use patent rights relating to the construction or working of tramways or carriages used thereon.

52. With respect to notices and to the delivery thereof by or to the Promoters the following provisions shall have effect (that is to say) :—

(1) Every notice consent or approval shall be in writing and if given by the Promoters or by any local or road authority or company shall be signed by their clerk or secretary :

(2) Notices and other documents required or authorised to be served under this Order may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any local authority or company any such notice or other document shall be delivered or sent by post in a prepaid letter addressed to the clerk to the local authority at his office or to the secretary of the company at their registered or principal office.

Provisions as
to arbitration.

53. Where under the provisions of the Tramways Act 1870 and this Order any matter in difference is referred to the arbitration of any person nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to the determination of any such difference as if the arbitration were pursuant to a submission.

Saving for
general Acts.

54. Nothing in this Order contained shall exempt the Promoters or any person using the tramways or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of rates and charges authorised by this Order.

SCHEDULE.

RATES AND CHARGES FOR ANIMALS GOODS &c.

<i>Animals.</i>			Per Mile.	
			s.	d.
For every horse mule or other beast of draught or burden... per head			0	4
For every ox cow bull or head of cattle	...	...	0	3
For every calf pig sheep or other small animal	...	...	0	1½
<i>Goods and Minerals.</i>				
For all coals coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways				
			per ton	0 2

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	Per Mile.	A.D. 1904.
	s. d.	Altrincham Urban District Council.
For all iron iron-ore pig-iron bar-iron rod-iron sheet-iron hoop-iron plates of iron slabs billets and rolled-iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought-iron not otherwise specifically classed herein and for heavy iron castings including railway chairs	per ton 0 2½	

For all sugar grain flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings	 per ton 0 3	
For cotton wools drugs and manufactured goods and all other wares merchandise fish articles matters or things not otherwise specifically classed herein	 per ton 0 4	
For every carriage of whatever description	 1 0	

	Any Distance.	
	s. d.	
<i>Small Parcels.</i>		
For any parcel not exceeding 7 lbs. in weight	 0 3	
For any parcel exceeding 7 lbs. and not exceeding 14 lbs. in weight...	0 5	
For any parcel exceeding 14 lbs. and not exceeding 28 lbs. in weight	0 7	
For any parcel exceeding 28 lbs. and not exceeding 56 lbs. in weight	0 9	
For any parcel exceeding 56 lbs. in weight but not exceeding 500 lbs. in weight such sum as the person conveying the same may think fit :		

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

	Per Mile.	
	s. d.	
<i>For the Carriage of Single Articles of Great Weight.</i>		
For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage exceeds four tons but does not exceed eight tons such sum as the person conveying the same may think fit not exceeding	 per ton 2 0	
For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage exceeds eight tons such sum as the person conveying the same may think fit.		

Regulations as to Rates.

For articles or animals conveyed on the tramways for a less distance than a mile rates and charges as for one mile may be demanded.

A fraction of a mile beyond an integral number of miles shall be deemed a mile.

For a fraction of a ton rates and charges may be demanded and taken according to the number of the quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

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Act, 1904.

A.D. 1904. With respect to all articles except stone and timber the weight shall be determined according to imperial avoirdupois weight.

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With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

CALVERLEY URBAN DISTRICT COUNCIL.

*Calverley
Urban District
Council.*

*Order authorising the Urban District Council of Calverley to
construct Tramways in their District and for other purposes.*

Preliminary.

Short title.

1. This Order may be cited as the Calverley Urban District Council Tramways Order 1904.

Incorporation
of Acts. s

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.

Interpretation.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings:

Provided that in this Order—

The expression "the tramways" means the tramways and works by this Order authorised or (as the case may be) any part thereof:

The expression "the undertaking" means the undertaking by this Order authorised:

The expression "the district" means the Urban District of Calverley in the West Riding of the County of York:

The expression "the council" means the Urban District Council of Calverley:

The expression "mechanical power" includes steam electric and every other motive power not being animal power and the word "engine" includes motor.

Promoters.

4. The council shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Lands.

5. The Promoters may—

(A) subject to the sanction of the Local Government Board and under such conditions as they may prescribe from time to time appropriate and use for any of the purposes of this Order but subject to the provisions (if any) under which such lands were

[4 EDW. 7.] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
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respectively acquired any lands from time to time vested in them : A.D. 1904.

- (B) by agreement from time to time purchase and acquire for the purposes of the undertaking such lands as they may require and may from time to time sell let or dispose of any such lands which may not be necessary for such purposes Provided that all sums received by the Promoters from the sale of such lands or from fines or premiums on leases of the same shall be applied solely in repayment of outstanding loans and that such moneys shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board :

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Provided that they shall not at any time hold for such purposes more than five acres of land Provided always that nothing in this Order shall exonerate the Promoters from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands appropriated or taken under the powers of this section.

Construction of Tramways.

6. The Promoters may subject to the provisions of this Order—

Construction
of tramways.

- (A) construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramways hereinafter described with all proper rails plates sleepers channels junctions turntables turnouts cross-overs passing-places works and conveniences connected therewith or for the purposes thereof :

- (B) erect or construct on any lands taken or appropriated under the powers of this Order any offices stables sheds carriage-houses engine-houses workshops stores waiting-rooms or other buildings yards works and conveniences for the purposes of the undertaking :

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

The tramways will be wholly situate within the district and are as follows (that is to say) :—

Tramway No. 1 1 mile 7 furlongs 8·39 chains in length commencing in Carr Road at the boundary of the city of Bradford passing thence in an easterly and south-easterly direction along Carr Road Town Gate Lane End Rodley Lane and terminating in that lane at the boundary

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Council.

of the city of Leeds by a junction with the authorised tramways of the Leeds Corporation :

Tramway No. 1 shall be laid as a double line throughout.

Tramway No. 2 4 furlongs 6·66 chains in length commencing at the junction of Lane End Rodley Lane and Farsley Lane by a junction with Tramway No. 1 at a point 184 yards south-east of Capel Street and passing thence in a south-easterly direction along Farsley Lane and terminating in that lane at the boundary of the urban district of Farsley :

Tramway No. 2 shall be laid as a single line except at the following places where it shall be a double line (that is to say):—

(A) From its commencement for a distance of 42 yards south-east thereof ;

(B) From a point 65 yards south-east of the footpath leading to Priesthorpe Road for a distance of 88 yards ;

(C) From a point 83 yards south-east of the carriage drive to the residence known as " Woodville " to a point 30 yards north-west of the termination of the tramway :

3 furlongs 6·76 chains of the above Tramway No. 2 is single line and 9·90 chains is double :

Provided that Tramway No. 2 shall not be laid opposite the residence known as " Elmwood " now in the occupation of William Best so as to leave a less space than 9 feet 6 inches between the fence and the nearest rail of the tramway.

For protection
of West Riding
County
Council.

7. The following provisions for the protection of the county council of the West Riding of Yorkshire (in this section called " the county council ") shall have effect unless otherwise agreed in writing between the county council and the Promoters (that is to say):—

(1) The Promoters shall not without the consent in writing of the county council execute any works which affect or interfere with the structural works of the bridge crossing Carr Beck. If with such consent as aforesaid the Promoters intend to execute such works they shall give notice in writing to the county council of such intention and such notice shall be accompanied by a plan and specification showing the nature and extent of the intended works :

(2) Any works under this section in so far as they affect or interfere with the structural works of such bridge shall if the county council so require be executed by the county council at the reasonable expense of the Promoters. The county council shall give notice accompanied in each case by sufficient plans and specifications to the Promoters of their intention so to execute such works and shall commence execute and complete the same with all reasonable despatch. Provided that unless the county council shall give the said notice to the Promoters within

[4 Edw. 7.] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
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twenty-eight days after receiving from the Promoters the notice hereinbefore prescribed the Promoters may themselves subject to the terms of this section proceed to execute the works :

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Council.*

- (3) If in consequence of the existence or user of the tramway it becomes necessary that such bridge should be strengthened the county council shall give notice accompanied by sufficient plans and specifications of the intended works to the Promoters and may after twenty-eight days from the date of the notice (or forthwith in case of emergency) proceed with all due despatch to execute all such works as may be reasonably necessary and the county council may recover from the Promoters all moneys reasonably expended by them in the execution thereof with full costs and charges in like manner as any simple contract debt of like amount may be recovered :
- (4) If such bridge be altered widened or rebuilt by the county council the county council may require the Promoters to alter the tramway in such manner as the circumstances of the case may reasonably require and shall at the same time send sufficient specifications or other information to show the nature of the alteration required :
- (5) If the county council shall find it necessary for the purpose of strengthening altering widening or rebuilding the said bridge that the working of the portion of the tramway over such bridge be wholly or in part stopped or delayed or that such portion of the tramway be wholly or in part taken up or removed and if the county council accordingly give the Promoters twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal the working of such portion of the tramway shall be stopped or delayed or such portion of the tramway shall be taken up or removed as stated in such notice at the expense of the Promoters and under their superintendence if they shall give such superintendence but no such working shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purposes as aforesaid and such portion of the tramway shall be restored with all possible despatch and in such case the county council shall not be liable to pay compensation in respect of such stoppage delay taking up or removal as aforesaid :
- (6) The Promoters shall not without the consent in writing of the county council place erect or attach any post or other support for any wire or any feeder box on or to the structure of such bridge and shall on receiving three months' notice in writing remove any post support or box which shall be so placed erected or attached as aforesaid :

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Urban District
Council.*

- (7) Any works to be executed with the consent of the county council affecting the said bridge shall be executed to the satisfaction of the county council in conformity with such plans sections and specifications as may be approved by them and which shall be submitted to them at least twenty-eight days before the commencement of such works. If the county council do not within the said twenty-eight days signify their approval or disapproval of the said plans sections and specifications or their directions in relation thereto they shall be deemed to have approved thereof. The Promoters shall pay the reasonable costs incurred by the county council in the superintendence of such works and the inspection of plans sections and specifications as aforesaid:
- (8) If any difference arises between the Promoters and the county council under this section such difference shall unless the parties otherwise agree be referred to the arbitration of a person nominated by the Board of Trade.

*For protection
of Clarke-
Thornhill
Estate.*

8. The following provisions for the protection of Thomas Bryan Clarke-Thornhill or other the owner or owners for the time being of the Clarke-Thornhill Estate and his and their assigns (in this section called "the owner") shall have effect unless otherwise agreed in writing between the owner and the Promoters (that is to say):—

- (1) Notwithstanding anything in this Order contained or shown on the deposited plans the Promoters shall not without the consent in writing of the owner construct Tramway No. 1 as a double line but shall construct the same as a single line only with such passing places as may be required or approved by the Board of Trade:
- (2) The Promoters shall not lay down Tramway No. 1 opposite any lands of the owner so as to leave a less space than 9 feet 6 inches between the kerb or edge of the footpath or the margin of the carriageway of the road where there is no footpath and the nearest rail of the tramway:
- (3) For the purpose of carrying into effect the provisions of this section the owner shall sell to the Promoters such lands belonging to him as the Promoters may require at a price to be agreed upon between the owner and the Promoters or failing agreement to be settled by arbitration as herein-after provided but without any allowance for compulsory purchase:
- (4) Any difference as to price which may arise under this section shall be settled by a single arbitrator to be appointed failing agreement by the Board of Trade upon the application of either of the parties.

*For protection
of Edwin
Woodhouse.*

9. The following provisions for the protection of Edwin Woodhouse or other the owner or owners for the time being of the property known

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as "Brookleigh" (in this section called "the owner") shall have effect unless otherwise agreed in writing between the owner and the Promoters (that is to say) :—

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(1) The Promoters shall not lay down Tramway No. 2 until Farsley Lane from the junction thereof with Rodley Lane to the boundary of the urban district of Farsley shall have been widened to a width of 36 feet including the footpaths thereof and such widening shall for a distance of 300 yards from the commencement of such tramway be upon the eastern side of Farsley Lane :

(2) No cars shall be stopped upon the tramways except in case of accident or other unavoidable necessity within 30 yards of any part of the said property of the owner.

10.—(1) The tramways shall be constructed on a gauge of four feet eight and a half inches or such other gauge as may from time to time be determined by the Board of Trade on the application of the Promoters.

Gauge and
width of car-
riages.

(2) In the event of the tramways being constructed on a less gauge than four feet eight and a half inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramways beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed six feet in width or such other width as may from time to time be prescribed by the Board of Trade.

11. In addition to the requirements of section 26 of the Tramways Act 1870 the Promoters shall lay before the Board of Trade a plan showing the proposed mode of constructing laying down or renewing the tramways and a statement of the materials intended to be used therein and the Promoters shall not commence the construction laying down or renewal of any of the tramways except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and in places where the Promoters are not the sole road authority under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by the said section.

Provisions as
to construction
of tramways.

12. The rails of the tramways shall be such as the Board of Trade may approve.

Rails of tram-
ways.

13.—(1) The Promoters shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Promoters at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds and to a penalty not exceeding five pounds for every day on which such non-compliance continues.

Penalty for not
maintaining
rails and road
in good con-
dition.

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 Edw. 7.]
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(2) In case it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the district that the Promoters have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Promoters to such penalty or penalties in respect thereof as is or are by this section imposed.

Tramways to
be kept on
level of surface
of road.

14. If the Promoters or any other road authority hereafter alter the level of any road along or across which any part of the tramways is laid or authorised to be laid the Promoters may and shall from time to time alter (or as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Cross-overs to
be constructed
in certain
cases.

15. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Promoters shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Power to make
additional
cross-overs &c.
and to alter
tramway lines.

16.—(1) The Promoters may subject to the provisions of this Order with the consent of the Board of Trade make maintain alter and remove all such cross-overs passing places sidings junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or for facilitating the traffic of the roads in which the same are laid or for providing access to any stables or carriage-houses sheds or works of the Promoters or for effecting junctions with any tramways.

(2) Notwithstanding anything shown on the deposited plans the Promoters may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing ones or single lines in lieu of double or interlacing ones or interlacing lines in lieu of double or single lines on any of the tramways and may with the like consent alter the position in the road of any of the tramways Provided that the uppermost surface thereof shall be on a level with the surface of the road.

(3) If in the construction of any works under this section any rail is intended to be so laid that for a distance of 30 feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Promoters shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such

[4 EDW. 7.] *Tramways Orders Confirmation (No. 1) [Ch. clxxx.]*
Act, 1904.

less space would intervene and such rail shall not be so laid if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Promoters within three weeks after receiving the notice from the Promoters express their objection thereto.

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 Council.*

(4) In places where the Promoters may not be the road authority the construction of any works under this section shall be subject to the approval of that authority.

17. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the tramways are laid it is in the opinion of the Promoters necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Promoters may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of the tramway so removed or discontinued subject in places in which the Promoters may not be the road authority to the approval of the road authority and to such regulations as that authority may make.

Temporary tramways may be made when necessary.

18. Any paving metalling or material excavated by the Promoters in the construction of any works under the authority of this Order from any road under their jurisdiction or control shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit.

Application of road materials excavated in construction of works.

19. The tramways shall not be opened for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade.

Tramways not to be opened until certified by Board of Trade.

Motive Power.

20. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

Provisions as to motive power.

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :
- (2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramways and for regulating the use of electrical power :
- (3) The Promoters or any person using any mechanical power on the tramways contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof :

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 EDW. 7.]
Act, 1904.

A.D. 1904.

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(4) The Board of Trade if they are of opinion—

(A) that the Promoters or such person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(B) that the use of mechanical power as authorised under this Order is a danger to the passengers or the public;

may by order either direct the Promoters or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Promoters or such person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

Mechanical
power works.

21. For the purpose of working any of the tramways by mechanical power the Promoters and their lessees may subject to the provisions of this Order (and as to the lessees subject to the terms of their lease)—

(A) construct provide maintain and use on any lands appropriated or acquired by them under the provisions of this Order stations for generating electric power with all necessary or proper machinery dynamos engines buildings works and conveniences:

(B) place construct erect lay down make and maintain on above or below the surface of any road within the district posts brackets electric conductors wires apparatus subways tunnels cables tubes and openings:

(C) with the consent of the owners and occupiers of any houses or buildings within the district affix to such houses or buildings and maintain posts brackets wires and apparatus.

Mechanical
power works
to be subject
to Tramways
Act 1870.

22. All works to be executed by the Promoters or their lessees in any road for working the tramways by mechanical power in pursuance of the powers of this Order shall be deemed to be works of a tramway subject in all respects (save as by this Order otherwise expressly provided) to the provisions of the Tramways Act 1870 as in this Order incorporated as if they had been therein expressly mentioned. Provided always that nothing in this Order contained shall authorise the opening or breaking up of any road outside the district.

Byelaws.

23. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any part of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say):—

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages:

For regulating the emission of smoke or steam from engines used on the tramways:

[4 EDW. 7.] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
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For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety :

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For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages :

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

24. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaw sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which engines are to be driven or propelled on the tramways under the authority of this Order but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

*Amendment of
Tramways Act
1870 as to bye-
laws by local
authority.*

25. The following provisions shall apply to the use of electric power under this Order unless such power is entirely contained in and carried along with the carriages :—

*Special provi-
sions as to use
of electric
power.*

- (1) The Promoters shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Promoters shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electric power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electric power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 EDW. 7.]
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- (4) The Promoters shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Promoters either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Promoters and any other party with respect to anything hereinbefore in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :
- (7) In this section the expression "the Promoters" includes any person owning working or running carriages over the tramways.

For protection
of Postmaster-
General.

26.—(A) Notwithstanding anything in this Order contained if any of the works by this Order authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

(B) In the event of the tramways being worked by electricity the following provisions shall have effect :—

- (1) The Promoters shall construct their electric lines and other works of all descriptions and shall work the undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent injurious affection whether by induction or otherwise to such

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telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration :

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- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Promoters as to any requirements so made shall be referred to arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electric energy is being generated for the purposes of this Order at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electric tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court

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having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :

- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Promoters" includes any person owning working or running carriages over the tramways.

Traffic upon Tramways.

Traffic upon
tramways.

27. The tramways may be used for the purpose of conveying passengers animals goods minerals and parcels.

Promoters'
lessees not bound
to carry animals
goods &c.

28. The Promoters' lessees shall not be bound to carry unless they think fit any animals goods minerals or parcels other than passengers' luggage not exceeding twenty-eight pounds in weight.

Provisions as
to carriage of
animals goods
&c.

29. In case the Promoters' lessees carry animals goods minerals or parcels they may and when required by the Council shall carry the same in separate carriages or separate parts of carriages set apart for that purpose Provided that this provision shall not apply to the carriage of passengers' luggage not exceeding twenty-eight pounds in weight.

Rates

Passengers'
fares.

30. The Promoters' lessees may demand and take for every passenger travelling upon the tramways including every expense incidental to such

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conveyance any rates or charges not exceeding one penny per mile and for this purpose a fraction of a mile shall be deemed a mile. A.D. 1904.

31. The Promoters or any person working or using the tramways shall not take or demand on Sunday or any public holiday any higher rates or charges than those levied by them on ordinary weeks days. *Calverley Urban District Council.*
As to fares on Sundays or holidays.

32. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof Provided that all such personal luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers. Passengers' luggage.

33.—(1) The Promoters' lessees at all times after the opening of the tramways or any part thereof for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way over the whole of the tramways of the Promoters every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Promoters' lessees in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes. Cheap fares for labouring classes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Promoters' lessees to provide such service as may appear to the Board to be reasonable.

(3) The Promoters' lessees shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

34. The Promoters' lessees may demand and take in respect of any animals goods minerals or parcels conveyed by them on the tramways including every expense incidental to such conveyance any rates or charges not exceeding the rates and charges specified in the schedule to this Order annexed subject to the regulations in that behalf therein contained. Rates and charges for animals goods &c.

35. The rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Promoters' lessees may by notice to be annexed to the list of rates and charges appoint. Payment of rates.

36. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways Periodical revision of rates.

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 EDW. 7.]
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or any portion thereof it is represented in writing to the Board of Trade by the Promoters or by their lessees or by twenty inhabitant ratepayers of the district that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if such referee reports that it has been proved to his satisfaction that all or any of the rates or charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Order authorised Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Promoters or their lessees.

Miscellaneous.

Power to
council to
work tram-
ways.

37. Notwithstanding anything in the Tramways Act 1870 to the contrary the council may place and run carriages on and may work and may demand and take rates and charges in respect of the tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks horses harness engines machinery apparatus steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the tramways by animal or mechanical power and in such case the several provisions in this Order contained relating to the working of the tramways and the taking of rates and charges therefor shall extend and apply mutatis mutandis to and in relation to the council and the council may work such tramways and demand and recover such rates and charges accordingly but nothing in this section shall empower the council to construct any station for generating electric power nor to create or permit a nuisance.

Regulations.

38. The regulations authorised by the Tramways Act 1870 to be made by the Promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the council be made by the council alone.

Working
agreements.

39. The Promoters may with the consent of the Board of Trade from time to time but subject to the provisions of this Order—

- (1) enter into and fulfil contracts and agreements with any local authority or person who are authorised to enter into such contracts or agreements and are the owners or lessees of any tramways or light railways in the district or in any adjacent district which

[4^{EDW. 7.}] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
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can be worked with any of the tramways of the council with respect to— A.D. 1904.

(a) the construction of the tramways by this Order authorised; *Calverley Urban District Council.*

(b) the working running over use maintenance and management by the contracting parties or any or either of them of their respective tramways or light railways or any part or parts thereof;

(c) the formation of a junction or junctions between any of the tramways or light railways of the respective contracting parties;

(d) the receiving or forwarding of any animals goods minerals or parcels coming from or destined for the respective undertakings of the contracting parties;

(e) the fixing collecting and apportionment of rates charges and other receipts arising from such traffic:

(2) confirm any such contracts and agreements which may have been entered into before the confirmation of this Order.

40. The Promoters may include in any mortgage of the local rate made by them under section 20 of the Tramways Act 1870 the moneys coming to them out of the rents reserved under any lease made under the authority of the Tramways Act 1870 or this Order and the rates charges and sums authorised to be taken or received by them under the provisions of this Order. *Mortgages may include rents.*

41. All orders regulations and byelaws made and consents and certificates given by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board and when purporting to be so signed the same shall be deemed to be duly made in accordance with the provisions of this Order and to be orders and regulations within the meaning of the Documentary Evidence Acts 1868 and 1882 and may be proved accordingly. *Orders &c. of Board of Trade.*

42. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction Acts. *Recovery of penalties.*

43. Section 58 of the Local Government Act 1894 shall apply to the accounts of the receipts and expenditure of the Promoters and of their committees and officers with respect to the tramways and the undertaking and to the audit thereof as if such accounts related to receipts and expenditure under the Public Health Act 1875. *Audit of accounts.*

44. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 is hereby incorporated with this Order and in construing that section for the purposes of this Order the expression "this Act" where used in that section shall mean this Order. *Protection of local authority.*

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 EDW. 7.]
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Form and de-
livery of
notices.

45. With respect to notices and to the delivery thereof by or to the Promoters the following provisions shall have effect (that is to say):—

- (1) Every notice consent or approval shall be in writing and if given by the Promoters or by any local or road authority or company shall be signed by their clerk or secretary :
- (2) Notices and other documents required or authorised to be served under this Order may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any local authority or company any such notice or other document shall be delivered or sent by post in a prepaid letter addressed to the clerk to the local authority at his office or to the secretary of the company at their registered or principal office.

Provisions as
to arbitration.

46. Where under the provisions of the Tramways Act 1870 and this Order any matter in difference is referred to the arbitration of any person nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to every such arbitration as if the arbitration were pursuant to a submission.

Carrying of
mails by
Promoters.

47. From and after the acquisition by the Promoters of the existing tramways the Conveyance of Mails Act 1893 shall notwithstanding any provision in any Act or Provisional Order relating to such tramways extend and apply to such tramways as if the same had been authorised by an Act of Parliament passed after the first day of January 1893 and to the Promoters as the body or person owning or working such tramways.

Saving for
general Acts.

48. Nothing in this Order contained shall exempt the Promoters or any person using the tramways or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of rates and charges authorised by this Order.

SCHEDULE.

RATES AND CHARGES FOR ANIMALS GOODS &C.

<i>Animals.</i>			<i>Per Mile.</i>	
			<i>s.</i>	<i>d.</i>
For every horse mule or other beast of draught or burden... per head			0	4
For every ox cow bull or head of cattle	...	...	0	3
For every calf pig sheep or other small animal	...	...	0	1½
<i>Goods and Minerals.</i>				
For all coals coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways ...				
		per ton	0	2

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	Per Mile.	A.D. 1904.
	s. d.	—
For all iron iron-ore pig-iron bar-iron rod-iron sheet-iron hoop-iron plates of iron slabs billets and rolled-iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought-iron not otherwise specifically classed herein and for heavy iron castings including railway chairs		Calverley Urban District Council.
per ton	0 2½	
For all sugar grain flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings	0 3	
For cotton wools drugs and manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein	0 4	
For every carriage of whatever description	1 0	

<i>Small Parcels.</i>	Any Distance.	
	s. d.	
For any parcel not exceeding seven pounds in weight	0 3	
For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight...	0 5	
For any parcel exceeding fourteen pounds but not exceeding twenty-eight pounds in weight	0 7	
For any parcel exceeding twenty-eight pounds but not exceeding fifty-six pounds in weight	0 9	
For any parcel exceeding fifty-six pounds but not exceeding five hundred pounds in weight such sum as the person conveying the same may think fit :		

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

<i>For the Carriage of Single Articles of Great Weight.</i>	Per Mile.	
	s. d.	
For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage exceeds four tons but does not exceed eight tons such sum as the person conveying the same may think fit not exceeding...	2 0	
For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage exceeds eight tons such sum as the person conveying the same may think fit.		

Regulations as to Rates.

For articles or animals conveyed on the tramways for a less distance than a mile rates and charges as for one mile may be demanded.

A fraction of a mile beyond an integral number of miles shall be deemed a mile.

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A.D. 1904. For a fraction of a ton rates and charges may be demanded and taken according to the number of the quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

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With respect to all articles except stone and timber the weight shall be determined according to imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

CROMPTON URBAN DISTRICT COUNCIL.

Crompton
Urban District
Council.

Order authorising the Urban District Council of Crompton to construct the Tramways in their District authorised by the Crompton Urban District Council Tramways Order 1901.

Short title.

1. This Order may be cited as the Crompton Urban District Council Tramways Order 1904.

Promoters.

2. The Urban District Council of Crompton shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Powers of construction &c.

3. The whole of the sections and the schedule of the Crompton Urban District Council Tramways Order 1901 with the exception of section 1 (Short title) section 4 (The Promoters) and section 25 (For protection of the Postmaster-General) are hereby incorporated in this Order and this Order shall be read and construed as if such sections and schedule were specifically enacted and set out herein.

For protection of Postmaster-General.

4.—(A) Notwithstanding anything in this Order contained if any of the works by this Order authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

(B) In the event of the tramways being worked by electricity the following provisions shall have effect:—

- (1) The Promoters shall construct their electric lines and other works of all descriptions and shall work the undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic

[4 EDW. 7.] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
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lines or the currents therein Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration :

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- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Promoters as to any requirements so made shall be referred to arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for the purposes of this Order at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 Edw. 7.]
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any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :

- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Promoters" includes any person owning working or running carriages over any of the tramways of the Promoters.

PLYMOUTH CORPORATION.

*Plymouth
Corporation.*

*Order authorising the Mayor Aldermen and Burgesses of the
Borough of Plymouth to construct additional Tramways in
their Borough.*

Short title.

1. This Order may be cited as the Plymouth Corporation Tramways Order 1904.

Incorporation
of Acts.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the

[4 EDW. 7.] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
Act, 1904.

Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order. A.D. 1904.

Plymouth Corporation.
Interpretation.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings :

Provided that in this Order—

The expression "the borough" means the borough of Plymouth :

The expression "the corporation" means the mayor aldermen and burgesses of the borough acting by the council :

The expression "the tramways" means the tramways and works by this Order authorised :

The expression "the undertaking" means the undertaking by this Order authorised :

The expression "the corporation tramways" includes any tramways owned leased or worked by the corporation :

The expression "mechanical power" includes steam electrical and every other motive power not being animal power and the word "engine" includes motor.

4. The corporation shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters." Promoters.

5. The Promoters may subject to the provisions of this Order—

Construction
of tramways.

(A) construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramways hereinafter described with all proper rails plates sleepers channels junctions turntables turnouts cross-overs and passing-places works and conveniences connected therewith or for the purposes thereof :

(B) erect or construct on any lands taken or appropriated under the powers of this Order any offices stables sheds carriage engine boiler and dynamo houses sheds buildings works and conveniences for the purposes of the undertaking :

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways authorised by this Order will be wholly situate within the borough and are as follows (that is to say):—

Tramway No. 1 (double line 1 furlong 1.15 chains in length) commencing in Tavistock Road by a junction with the existing tramway

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Act, 1904.

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*Plymouth
Corporation.*

of the Promoters at a point 1·30 chains north of Duke Street passing along an intended new street extending from Clarence Street to Ebrington Street and along an intended widened street at the corner of Ebrington Street and Old Town Street and terminating in Old Town Street by a junction with the existing tramway of the corporation at a point 3 chains south of Old Town Avenue :

Tramway No. 2 (double line 1·60 chains in length) commencing in the said intended new street by a junction with Tramway No. 1 at a point 1 chain north of Ebrington Street passing along the intended new street and terminating in Ebrington Street by a junction with the existing tramway of the Promoters at a point 0·60 chain west of Ebrington Ope :

Tramway No. 3 (double line 2·20 chains in length) commencing in Ebrington Street by a junction with the existing tramway of the Promoters at a point 0·60 chain west of Ebrington Ope passing along an intended widened street at the junction of Old Town Street and Ebrington Street and terminating in Old Town Street by a junction with Tramway No. 1 at a point 2·64 chains north of the termination of Tramway No. 1 :

Tramway No. 4 (1 furlong 3·92 chains or thereabouts in length whereof 1 furlong 3·28 chains will be double line and 0·64 chain will be single line) commencing in Saltash Road at the boundary of the borough passing along Saltash Road and Coburg Street and terminating in the last-named street by a junction with the existing tramway of the Promoters at a point 1·64 chains south of North Road :

This tramway will be laid as a double line except at the following place where it will be laid as a single line (that is to say) :—

In Saltash Road from the commencement of the tramway to a point 0·64 chain therefrom measured in a south-easterly direction.

For protection
of Admiralty.

6.—(1) Nothing in this Order shall affect prejudicially any right power privilege or exemption of the Crown or in particular shall authorise the Promoters to affect or interfere with any right property or interest of the Admiralty under any of the provisions of the Act of 5 George IV. chapter 49 without the consent in writing of the Admiralty under the hand of the Director of Works of the Navy which consent may be given upon such conditions as he may think fit.

(2) If by reason of the construction or use of any of the works authorised by this Order any injury or damage is caused to any tunnel pipe or other work vested in or constructed maintained or used by the Admiralty under the provisions of the said Act of 5 Geo. IV. chapter 49 or otherwise the same may forthwith be made good by the Admiralty to their satisfaction at the expense in all respects of the Promoters or the Promoters shall if required by the Admiralty make good the same to the like satisfaction and at the like expense.

[4 EDW. 7.] *Tramways Orders Confirmation (No. 1)* [Ch. clxxx.]
Act, 1904:

(3) Before the Admiralty proceed by their servants agents or workmen to open or break up any street lane passage or place along the line of any tramway to which this Order applies for the purpose of effecting any ordinary repairs or of maintaining or improving any of the tunnels pipes or other works aforesaid the Admiralty their servants or agents shall except in the case of emergency give seven days' notice to the Promoters who shall thereupon cause the traffic on the said line of tramway to be discontinued as may be necessary and the expense of taking up and relaying any of the works authorised by or executed or required in pursuance of this Order shall be borne and paid to the Admiralty by the Promoters.

A.D. 1904.

Plymouth Corporation.

7.—(1) The Promoters shall not in working Tramway No. 4 by this Order authorised obstruct or interfere with the free ingress or egress of persons vehicles or goods to or from the North Road Station of the Great Western and London and South Western Railway Companies or the approaches thereto.

For protection of Great Western and London and South Western Railway Companies.

(2) Unless the Board of Trade in the interests of safety otherwise require the following provisions shall notwithstanding anything in this Order have effect:—

(A) No vehicle used on the said tramway shall stop between a point measuring one chain west or north-west of the northern approach and a point measuring one chain east or south-east of the southern approach to the said station except the consents of the Great Western and London and South Western Railway Companies be first obtained:

(B) No additional crossing or passing place siding junction or turnout shall be made by the corporation between such points except with the like consents.

8. For the protection of the General Tolls Company Limited or other the persons for the time being entitled to the tolls payable in respect of Stonehouse Bridge or its approaches (all of whom are included under the expression "the tolls company") the following provisions shall have effect (that is to say):—

For protection of General Tolls Company Limited.

(1) In the event of any tramcars of the corporation being worked over Stonehouse Bridge by electrical power the corporation shall pay to the tolls company for the passage of such tramcars over the said bridge the tolls specified in subsection (11) of section 33 of the Plymouth Stonehouse and Devonport Tramways Act 1900 (For protection of General Tolls Company Limited) and all the provisions of the said subsection and of subsections (12) and (13) of the said section shall apply to the corporation in reference to the passage of their tramcars over the said bridge as if the corporation had been mentioned in such subsections with respect to such tramcars and nothing in this Act shall affect the rights of the tolls company to levy tolls in respect of the passage of the tramcars of the corporation over the said bridge which shall be worked otherwise than by electrical power:

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A.D. 1904.

Plymouth Corporation.

(2) The corporation shall be answerable to the tolls company for all accidents damages and injuries which may be caused to Stonehouse Bridge or its approaches by reason of the tramcars of the corporation being worked over the said bridge.

Application of provisions of Order of 1893.

9. The following provisions of the Plymouth Corporation Tramways Order 1893 shall subject to the provisions of this Order and so far as the same are applicable in that behalf extend and apply mutatis mutandis to and in relation to the tramways authorised by this Order as if such tramways had been authorised by the Plymouth Corporation Tramways Order 1893 (namely):—

- Section 5 (Lands by agreement):
- Section 10 (Gauge of tramways):
- Section 11 (Provisions as to construction of tramways):
- Section 12 (Mode of formation of tramways):
- Section 13 (Penalty for not maintaining rails and roads in good condition):
- Section 15 (Temporary tramways may be made where necessary):
- Section 16 (Application of road materials excavated in construction of works):
- Section 17 (Tramways not to be opened until certified by Board of Trade):
- Section 21 (Applying provisions of Acts of 1882 and 1892 as to traffic tolls &c.):
- Section 22 (Provisions as to arbitration):
- Section 23 (Form and delivery of notices):
- Section 25 (Audit of accounts):
- Section 27 (Saving for general Acts).

Application of provisions of Act of 1898.

10. The following provisions of the Plymouth Corporation Act 1898 shall subject to the provisions of this Order and so far as the same are applicable in that behalf extend and apply mutatis mutandis to and in relation to the tramways authorised by this Order as if such tramways had been authorised by the Plymouth Corporation Act 1898 (namely):—

- Section 44 (Provisions as to motive power):
- Section 46 (Restrictions on use of electric power):
- Section 49 (Byelaws):
- Section 50 (Amendment of Tramways Act 1870 as to byelaws by local authority):
- Section 51 (Orders &c. of Board of Trade):
- Section 52 (Power to Corporation to work tramways):
- Section 53 (Fares on Sundays or public holidays not to be raised):
- Section 83 (Recovery of penalties &c.).

Application of provisions of Order of 1900.

11. The following provisions of the Plymouth Corporation Tramways Order 1900 shall subject to the provisions of this Order and so far as the same are applicable in that behalf extend and apply mutatis mutandis to

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and in relation to the tramways authorised by this Order as if such tramways had been authorised by the Plymouth Corporation Tramways Order 1900 (namely) :—

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Section 7 (Alteration of tramways) :

Section 8 (Additional cross-overs &c. may be made where necessary) :

Section 11 (Cheap fares for labouring classes) :

Section 12 (Mechanical power works) :

Section 13 (Mechanical power works to be subject to section 30 of Tramways Act 1870).

12. The Promoters may with the consent of the Board of Trade from time to time but subject to the provisions of this Order—

Working
agreements.

(1) Enter into and fulfil contracts and agreements with any local authority or person who are authorised to enter into such contracts or agreements and are the owners or lessees of any tramways or light railways in any adjacent district which can be worked with any of the tramways of the council with respect to—

(A) the formation of a junction or junctions between the tramways of the corporation and the tramways belonging to such authority company or person ;

(B) the working running over using maintaining and managing by either of the contracting parties of the tramways or any of the tramways of the other of them and the fixing apportionment and distribution of the rates and profits arising therefrom or of a rent for the same ;

(C) the supply under any agreement for the tramways or any of the tramways of either of the contracting parties being worked and used by the other of them of motive power or of engines carriages and plant necessary for the purposes of such agreement ;

(D) the interchange accommodation and forwarding of carriages passengers and traffic coming from or destined for the respective undertakings of the contracting parties ;

(E) the appointment of officers and servants and generally all such matters as may be deemed desirable for enabling the tramways of the contracting parties to be worked in connection :

(2) Confirm any such contracts and agreements which may be entered into before the confirmation of this Order :

Provided always that—

(A) no agreement or arrangement shall be entered into under the provisions of this section with respect to any tramway or light railway in the borough of Devonport unless the mayor aldermen and burgesses of that borough are parties to and execute such agreement or arrangement nor with respect to any

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tramway or light railway in the urban district of East Stonehouse unless the council for that urban district are parties to and execute such agreement or arrangement;

(B) no agreement or arrangement shall be entered into with the lessee of a tramway or light railway under the provisions of this section unless the owner of such tramway or light railway be a party to and execute such agreement or arrangement;

(C) except in cases of emergency no electrical energy shall be supplied by the Promoters under an agreement or arrangement entered into in pursuance of this section in any district in which any local authority company or person shall at the date of the agreement or arrangement be supplying energy under statutory authority without the consent in writing of such local authority company or person.

For protection
of Postmaster-
General.

13. Notwithstanding anything in this Order contained if any of the works authorised to be executed by this Order involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

In the event of any tramways of the Promoters being worked by electricity the following provisions shall have effect:—

- (1) The Promoters shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration:
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking of the Promoters the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection:
- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-

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eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Promoters as to any requirement so made shall be referred to arbitration:

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- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the corporation tramways or the works in connexion therewith is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such tramway or works or to the working of the tramway undertaking the Engineer-in-Chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for tramway purposes at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such Engineer-in-Chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations:
- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues:
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice:
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line

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*Plymouth
Corporation.*

is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :

- (8) For the purposes of this section and subject as therein provided sections two ten eleven and twelve of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections thirty to thirty-two both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Promoters" includes their lessees and any person owning working or running carriages on any of the tramways of the Promoters :
- (13) Section forty-seven of the Plymouth Corporation Act 1898 is hereby repealed.

ROCHDALE CORPORATION.

*Rochdale
Corporation.*

Order authorising the Mayor Aldermen and Burgesses of the Borough of Rochdale to construct an additional Tramway in their Borough.

Short title.

1. This Order may be cited as the Rochdale Corporation Tramway Order 1904.

Incorporation
of Acts.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.

Interpretation.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings :

Provided that in this Order—

The expression "the Act of 1900" means the Rochdale Corporation Act 1900 :

The expression "the tramway" means the tramway and works by this Order authorised :

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The expression "the corporation tramways" has the meaning assigned thereto by the Act of 1900: A.D. 1904.

The expression "the borough" means the borough of Rochdale. *Rochdale Corporation.*

4. The mayor aldermen and burgesses of the borough acting by the council shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters." Promoters.

5. The Promoters may subject to the provisions of this Order construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramway hereinafter described with all proper rails plates sleepers channels (including in that expression channels passages and tubes for ropes cables and electric lines) junctions turntables turnouts crossovers and passing-places carriages works mechanical appliances waiting-rooms sheds shelters plant and conveniences connected therewith as may be necessary or proper therefor and for connecting and using the same with the corporation tramways: Construction of tramway.

Provided that nothing in this Order or in any Act wholly or in part incorporated herewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

The tramway will be wholly situated within the borough and is as follows:—

A tramway 1 furlong 8·75 chains in length (whereof 3·50 chains will be double line and 1 furlong 5·25 chains will be single line) commencing in Spotland Road by a junction with the existing tramway in that road at a point 8 yards or thereabouts north-westward from the north-western side of Hudson Street passing thence in a south-easterly direction along Spotland Road into and along St. Mary's Gate across Toad Lane into and along Cheetham Street and terminating in that street by a junction with the authorised tramway of the corporation in that street at a point 2 yards or thereabouts north-eastward from the north-eastern side of Redcross Street:

The tramway will be laid as a single line except between the following points where it will be double:—

From a point 16 yards or thereabouts south-eastward from the south-eastern side of Leftkilm Street to a point 3 yards or thereabouts westward from the eastern side of Sir Robert Peel Street.

6. Subject to the provisions of this Order the tramway shall for all purposes form part of the corporation tramways and the Promoters and their lessees and licensees may in respect of the tramway exercise and enjoy all and the like powers rights privileges and authorities which they now may or are empowered to exercise and enjoy and shall be subject and liable to the Tramway to form part of corporation tramways.

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—
*Rochdale
Corporation.*

like penalties conditions restrictions and stipulations as they are subject and liable to with respect to the corporation tramways and may demand take and recover in respect of the tramway or any part or parts thereof the like tolls rates and charges for the use thereof and for the conveyance thereon of traffic of all kinds and for the use of carriages placed and run thereon by them as they are authorised to demand and take in respect of the tramways authorised by the Act of 1900 Provided that nothing in this Order shall authorise the attachment of brackets wires and apparatus to any house or building without the consent of the owner and occupier thereof or the taking of any lands except by agreement Provided further that the corporation may appoint stages upon the corporation tramways each of not less than half a mile in length and may demand and take for every passenger travelling upon the corporation tramways including every expense incidental to the conveyance of such passenger any rates or charges not exceeding one penny for each two stages (or portion of that distance) travelled and for this purpose the fraction of a stage shall be deemed a stage.

*Alteration of
tramways.*

7. So far as regards any tramways of the corporation within the borough the provisions of section 21 (Power to lay down double or interlacing lines in place of single lines and vice versa) of the Act of 1900 shall extend to the substitution of double lines for interlacing lines or interlacing lines for double lines and the notices of the Promoters' intention referred to in the said section and in section 17 (Power to make additional crossings &c.) of the said Act shall be sent to the owners and occupiers therein mentioned one month before the Promoters commence the alterations or works in those sections provided for.

*For protection
of Postmaster-
General.*

8. Section 24 (For protection of Postmaster-General) of the Act of 1900 shall be and is hereby amended as follows and as so amended shall extend and apply to the tramway and to the Promoters in respect thereof:—

(A) Subsection (3) of the said section shall be read as if the words within brackets "or the laying of lines crossing the lines of the " Postmaster-General at right angles at the point of shortest " distance and so continuing for a distance of six feet on each " side of such point" were omitted and such words shall be deemed to be omitted from the said subsection :

(B) The following provision shall have effect in addition to and shall be read with the provisions contained in the said section:—

If any telegraphic line of the Postmaster-General situate within one mile of any portion of the corporation tramways or the works in connection therewith is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such tramways or works or to the working of the tramway undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for tramway purposes at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of

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the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations.

A.D. 1904.

Rochdale Corporation.

9. Nothing in this Order contained shall exempt the Promoters or any person using the tramway or the tramway from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates or charges authorised by this Order.

Saving for general Acts.

ROYTON URBAN DISTRICT COUNCIL.

Order authorising the Urban District Council of Royton to construct the Tramways in their District authorised by the Royton Urban District Council Tramways Order 1901.

Royton Urban District Council.

1. This Order may be cited as the Royton Urban District Council Tramways Order 1904.

Short title.

2. The Urban District Council of Royton shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Promoters.

3. The whole of the sections and the schedule of the Royton Urban District Council Tramways Order 1901 with the exception of section 1 (Short title) section 4 (The Promoters) and section 28 (For protection of the Postmaster-General) are hereby incorporated in this Order and this Order shall be read and construed as if such sections and schedule were specifically enacted and set out herein.

Powers of construction &c.

4.—(A) Notwithstanding anything in this Order contained if any of the works by this Order authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For protection of Postmaster-General.

(B) In the event of the tramways being worked by electricity the following provisions shall have effect:—

(1) The Promoters shall construct their electric lines and other works of all descriptions and shall work the undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 Edw. 7.]
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which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration :

- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall comply with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Promoters as to any requirements so made shall be referred to arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for the purposes of this Order at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any

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act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice:

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- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work:
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order:
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882:
- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act:
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid:
- (12) In this section the expression "the Promoters" includes any person owning working or running carriages over any of the tramways of the Promoters.

WARDLE URBAN DISTRICT COUNCIL.

Order authorising the Urban District Council of Wardle to construct a Tramway in their District and for other purposes.

*Wardle
Urban District
Council.*

Preliminary.

1. This Order may be cited as the Wardle Urban District Council Short title.
Tramway Order 1904.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.

*Incorporation
of Acts.*

[Ch. clxxx.] *Tramways Orders Confirmation (No. 1)* [4 Edw. 7.]
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Interpretation.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings :

Provided that in this Order—

The expression "the tramway" means the tramway and works by this Order authorised or (as the case may be) any part thereof :

The expression "the undertaking" means the undertaking by this Order authorised :

The expression "the existing tramways" means the tramways in the district constructed under the powers of the Rochdale Tramways Order 1881 and the Manchester Bury and Rochdale Tramways (Extensions) Order 1882 :

The expression "the district" means the urban district of Wardle in the county of Lancaster :

The expression "the council" means the urban district council of Wardle :

The expression "mechanical power" includes steam electrical and every other motive power not being animal power and the word "engine" includes motor.

Promoters.

4. The council shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Lands.

5. The Promoters may—

(A) subject to the sanction of the Local Government Board and under such conditions as they may prescribe from time to time appropriate and use for any of the purposes of this Order (but subject to the provisions (if any) under which such lands were respectively acquired) any lands from time to time vested in them :

(B) by agreement from time to time purchase and acquire for the purposes of the undertaking such lands as they may require and may from time to time sell let or dispose of any such lands which may not be necessary for such purposes Provided that all sums received by the Promoters from the sale of such lands or from fines or premiums on leases of the same shall be applied solely in repayment of outstanding loans and that such moneys shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board :

Provided that they shall not at any time hold for such purposes more than three acres of land Provided always that nothing in this Order shall exonerate the Promoters from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands appropriated or taken under the powers of this section.

Construction of Tramway.

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6. The Promoters may subject to the provisions of this Order—

(A) construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramway hereinafter described with all proper rails plates sleepers channels junctions turntables turnouts crossings passing-places works and conveniences connected therewith or for the purpose thereof:

(B) erect or construct on any lands taken or appropriated under the powers of this Order any offices stables sheds workshops stores waiting rooms or other buildings yards works and conveniences for the purposes of the undertaking:

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

The tramway will be wholly situate within the district and is as follows (that is to say):—

Tramway No. 2.—7 furlongs 4·20 chains in length (whereof 9 chains will be double and 6 furlongs 5·20 chains will be single line) commencing in Wardle Road at the boundary between the urban district of Wardle and the county borough of Rochdale passing thence in a northerly direction along Wardle Road and Ramsden Road and terminating in the said Ramsden Road at a point 0·79 chain north of the urban district council offices:

The Tramway No. 2 will be laid as a single line throughout except at the following places where it will be laid as a double line (that is to say):—

(A) In Wardle Road between the points respectively 2·45 chains and 5·45 chains north of the boundary between the urban district of Wardle and the county borough of Rochdale;

(B) In Wardle Road between the points respectively 3·28 chains and 6·28 chains south of the centre of Munday's Lane;

(C) In Ramsden Road between the points respectively 7·25 chains and 1 furlong 0·25 chain north of the centre of Law Flat:

Provided that the Promoters shall not construct the said tramway unless and until they have widened the Wardle and Ramsden Roads to a uniform width of not less than twenty-three feet six inches respectively:

Provided also that until the existing tramways have been purchased by the Promoters or by the corporation of Rochdale with the consent of the Promoters the Promoters shall not construct junctions or otherwise interfere

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Construction
of tramway.

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A.D. 1904. with any tramway existing at the date of this Order and that on such purchase the provisions of this Order shall mutatis mutandis apply to the existing tramways instead of the provisions of the Rochdale Tramways Order 1881 and the Manchester Bury and Rochdale Tramways (Extension) Order 1882 as if the same were authorised by this Order and the expressions "the tramway" and "the undertaking" shall be construed accordingly.

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Council.*

Gauge and
width of car-
riages.

7.—(1) The tramway shall be constructed on a gauge of four feet eight and a half inches or such other gauge as may from time to time be determined by the Board of Trade on the application of the Promoters.

(2) In the event of the tramway being constructed on a less gauge than four feet eight and a half inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramway beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramway but no engine or carriage used on the tramway shall exceed six feet in width or such other width as may from time to time be prescribed by the Board of Trade.

Provisions as
to construction
of tramway.

8. In addition to the requirements of section 26 of the Tramways Act 1870 the Promoters shall lay before the Board of Trade a plan showing the proposed mode of constructing laying down or renewing the tramway and a statement of the materials intended to be used therein and the Promoters shall not commence the construction laying down or renewal of the tramway except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and in places where the Promoters are not the sole road authority under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by the said section.

Rails of tram-
way.

9. The rails of the tramway shall be such as the Board of Trade may approve.

Penalty for not
maintaining
rails and road
in good condi-
tion.

10.—(1) The Promoters shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramway and the substructure upon which the same rest and if the Promoters at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds and to a penalty not exceeding five pounds for every day on which such non-compliance continues.

(2) In case it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the district that the Promoters have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or assistant secretary of the

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Board of Trade may be adduced as evidence of such default and of the liability of the Promoters to such penalty or penalties in respect thereof as is or are by this section imposed.

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11. If the Promoters or any other road authority hereafter alter the level of any road along or across which any part of the tramway is laid or authorised to be laid the Promoters may and shall from time to time alter (or as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Tramway to be
kept on level of
surface of road.

12. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Promoters shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Cross-overs to
be constructed
in certain cases.

13.—(1) The Promoters may subject to the provisions of this Order with the consent of the Board of Trade make maintain alter and remove all such cross-overs passing-places sidings triangles junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramway or for providing access to any stables carriage-houses sheds or works of the Promoters or with the consent of the owners and lessees of any tramways or light railways which can be worked in connection with the tramway for effecting junctions with such tramways or light railways.

Power to make
cross-overs &c.
and to alter
tramway lines.

(2) Notwithstanding anything shown on the deposited plans the Promoters may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing ones or single lines in lieu of double or interlacing ones or interlacing lines in lieu of double or single lines on the tramway and may with the like consent alter the position in the road of the tramway Provided that the uppermost surface thereof shall be on a level with the surface of the road as altered or widened.

(3) If in the construction of any such works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Promoters shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space shall intervene and such rail shall not be so laid if the owners or occupiers of one third of such houses shops or warehouses by writing under their hands addressed and delivered to the Promoters within three weeks after receiving the notice from the Promoters express their objection thereto.

(4) In places where the Promoters may not be the road authority the construction of any works under this section shall be subject to the approval of that authority.

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Temporary
tramways may
be made when
necessary.

14. Where by reason of the execution of any work affecting the surface or soil of any road along which the tramway is laid it is in the opinion of the Promoters necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Promoters may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of the tramway so removed or discontinued subject in places in which the Promoters may not be the road authority to the approval of the road authority and to such regulations as that authority may make.

Application
of road ma-
terials exca-
vated in con-
struction of
works.

15. Any paving metalling or material excavated by the Promoters in the construction of any works under the authority of this Order from any road under their jurisdiction or control shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit.

Tramway not
to be opened
until certified
by Board of
Trade.

16. The tramway shall not be open for public traffic until the same has been inspected and certified to be fit for such traffic by the Board of Trade.

Motive Power.

Provisions as
to motive
power.

17. The carriages used on the tramway may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade nor unless and until the passing-places are of a length satisfactory to the Board of Trade:
- (2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramway and for regulating the use of electrical power:
- (3) The Promoters or any company or person using any mechanical power on the tramway contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof:
- (4) The Board of Trade if they are of opinion—
 - (A) that the Promoters or such person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

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(B) that the use of mechanical power as authorised under this Order is a danger to the passengers or the public ;
may by order either direct the Promoters or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Promoters or such person shall comply with every such order In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

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18. For the purpose of working the tramway by mechanical power the Promoters and their lessees subject to the provisions of this Order (and as to the lessees subject to the terms of their lease) may—

Mechanical
power works.

- (A) construct provide maintain and use on any lands appropriated or acquired by them under the provisions of this Order stations for generating electrical power with all necessary or proper machinery dynamos engines building works and conveniences :
- (B) place construct erect lay down make and maintain on above or below the surface of any street or road within the district posts brackets electric conductors wires apparatus subways tunnels cables tubes and openings :
- (C) with the consent of the owners and occupiers of any building within the district attach to such building and maintain posts brackets rosettes electric conductors wires and apparatus.

19. All works to be executed by the Promoters or their lessees in any street or road for working the tramway by mechanical power in pursuance of the powers of this Order shall be deemed to be works of a tramway subject in all respects (save as by this Order otherwise expressly provided) to the provisions of the Tramways Act 1870 as in this Order incorporated as if they had been therein expressly mentioned Provided always that nothing in this Order contained shall authorise the opening or breaking up of any road outside the district.

Mechanical
power works
to be subject to
Tramways Act
1870.

20. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any part of the tramway upon which mechanical power may be used for all or any of the following purposes (that is to say) :—

Byelaws.

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages :

For regulating the emission of smoke or steam from engines used on the tramway :

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety :

For regulating the entrance to exit from and accommodation in the carriages used on the tramway and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages ;

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For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramway by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

Amendment of
Tramways Act
1870 as to bye-
laws by local
authority.

21. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in traveling on the tramway shall not authorise the local authority to make any byelaw sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which engines are to be driven or propelled on the tramway under the authority of this Order but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

Special provi-
sions as to use
of electrical
power.

22. The following provisions shall apply to the use of electrical power under this Order unless such power is entirely contained in and carried along with the carriages :—

- (1) The Promoters shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Promoters shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Promoters shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Promoters either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing

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such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking:

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- (5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents:
- (6) If any difference arises between the Promoters and any other party with respect to anything hereinbefore in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be:
- (7) In this section the expression "the Promoters" shall include any person owning working or running carriages over any tramway of the Promoters.

23.—(A) Notwithstanding anything in this Order contained if any of the works by this Order authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For protection
of Postmaster-
General.

(B) In the event of the tramway being worked by electricity the following provisions shall have effect:—

- (1) The Promoters shall construct their electric lines and other works of all descriptions and shall work the undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration:
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking the Promoters shall pay the expense of all such alterations in the

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telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

- (3) Before any electric line is laid down or any act or work for working the tramway by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Promoters as to any requirements so made shall be referred to arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for tramway purposes at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of

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the execution thereof stating the reason for doing or executing the same without previous notice : A.D. 1904.

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- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :
- (9) The expression " electric line " has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression " the Promoters " includes any person owning working or running carriages over any of the tramways of the Promoters.

Traffic upon Tramway.

24. The tramway may be used for the purpose of conveying passengers animals goods minerals and parcels. Traffic upon tramway.

25. The Promoters' lessees shall not be bound to carry unless they think fit any animals goods minerals or parcels other than passengers' luggage not exceeding twenty-eight pounds in weight. Promoters' lessees not bound to carry animals goods &c.

26. In case the Promoters' lessees carry animals goods minerals or parcels they may and when required by the council shall carry the same in separate carriages or separate parts of carriages set apart for that purpose Provided that this provision shall not apply to the carriage of passengers' luggage. Provisions as to carriage of animals goods &c.

Rates.

27. The Promoters' lessees may demand and take for every passenger travelling upon the tramway including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile and for this purpose the fraction of a mile shall be deemed a mile Provided that the Promoters' lessees may appoint stages upon the tramway each of not less Passengers' fares.

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A.D. 1904. *Wardle Urban District Council.* than half a mile in length and may demand and take for every passenger travelling upon the tramway including every expense incidental to the conveyance of such passenger any rates or charges not exceeding one penny for each two stages (or portion of that distance) travelled and for this purpose the fraction of a stage shall be deemed a stage.

As to fares on Sundays or holidays. 28. The Promoters or any person working or using the tramway shall not take or demand on Sunday or any public holiday any higher rates or charges than those levied by them on ordinary week days.

Passengers' luggage. 29. Every passenger travelling upon the tramway may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof Provided that all such personal luggage be carried by hand and at the responsibility of the passenger and do not occupy any part a seat nor be of a form or description to annoy or inconvenience other passengers.

Cheap fares for labouring classes. 30.—(1) The Promoters' lessees at all times after the opening of the tramway for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning in the week and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than seven in the morning or earlier than six in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Promoters' lessees in lieu of running such carriages after six o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Promoters' lessees to provide such service as may appear to the Board to be reasonable.

(3) The Promoters' lessees shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

Rates and charges for animals goods &c. 31. The Promoters' lessees may demand and take in respect of any animals goods minerals or parcels conveyed by them on the tramway including every expense incidental to such conveyance any rates or charges not exceeding the rates and charges specified in the schedule to this Order annexed subject to the regulations in that behalf therein contained.

Payment of rates. 32. The rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramway and in such manner and under such regulations as the Promoters or their lessees may by notice to be annexed to the list of rates and charges appoint.

Periodical revision of rates. 33. If at any time after three years from the opening for public traffic of the tramway or any portion thereof or after three years from the date of

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any order made in pursuance of this section in respect of the tramway or any portion thereof it is represented in writing to the Board of Trade by the Promoters or by their lessees or by twenty inhabitant ratepayers of the district that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramway or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if such referee reports that it has been proved to his satisfaction that all or any of the rates or charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramway or on such portion thereof in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Order authorised Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Promoters or their lessees.

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Miscellaneous.

34. Notwithstanding anything in the Tramways Act 1870 to the contrary the council may place and run carriages on and may work and may demand and take rates and charges in respect of the tramway and in respect of the use of such carriages and may provide such stables buildings carriages trucks horses harness engines machinery apparatus steam cable electrical and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the said tramway by animal or mechanical power and in such case the several provisions in this Order contained relating to the working of the tramway and the taking of rates and charges therefor shall extend and apply mutatis mutandis to and in relation to the council and the council may work such tramway and demand and recover such rates and charges accordingly but nothing in this section shall empower the council to construct any station for generating electrical power nor to create or permit a nuisance.

Power to council to work tramway.

35. The regulations authorised by the Tramways Act 1870 to be made by the Promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the council be made by the council alone.

Regulations.

36. The Promoters may with the consent of the Board of Trade from time to time but subject to the provisions of this Order—

Working agreements.

- (1) enter into and fulfil contracts and agreements with any local authority or person who are authorised to enter into such contracts and agreements and are the owners or lessees of any tramways or light railways in the district or in any adjoining district

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which can be worked with any of the tramways of the council for and in relation to—

(A) the construction of the whole or any part of the tramway by this Order authorised;

(B) the working running over use maintenance and management by the contracting parties or any or either of them of their respective tramways or light railways or any part or parts thereof;

(C) the formation of a junction or junctions between any of the tramways or light railways of the respective contracting parties;

(D) the receiving or forwarding of any animals goods minerals or parcels coming from or destined for the respective undertakings of the contracting parties;

(E) the fixing collecting and apportionment of rates charges and other receipts arising from such traffic:

(2) confirm any such contracts and agreements which may have been entered into before the confirmation of this Order.

Mortgages may
include rents.

37. The Promoters may include in any mortgage of the local rate made by them under section 20 of the Tramways Act 1870 the moneys coming to them out of the rents reserved under any lease made under the authority of the Tramways Act 1870 or this Order and the rates charges and sums authorised to be taken or received by them under the provisions of this Order.

Orders &c. of
Board of
Trade.

38. All orders regulations and byelaws made and consents and certificates given by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board and when purporting to be so signed the same shall be deemed to be duly made in accordance with the provisions of this Order and to be orders and regulations within the meaning of the Documentary Evidence Acts 1868 and 1882 and may be proved accordingly.

Recovery of
penalties.

39. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction Acts.

Audit of
accounts.

40. Section 58 of the Local Government Act 1894 shall apply to the accounts of the receipts and expenditure of the Promoters and of their committees and officers with respect to the tramway and the undertaking and to the audit thereof as if such accounts related to receipts and expenditure under the Public Health Act 1875.

Protection of
local authority.

41. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 is hereby incorporated with this Order and in construing that section for the purposes of this Order the expression "this Act" where used in that section shall mean this Order.

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42. With respect to notices and to the delivery thereof by or to the Promoters the following provisions shall have effect (that is to say):—

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Form and deli-
very of notices.

(1) Every notice consent or approval shall be in writing and if given by the Promoters or by any local or road authority or company shall be signed by their clerk or secretary :

(2) Notices and other documents required or authorised to be served under this Order may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any local authority or company any such notice or other document shall be delivered or sent by post in a prepaid letter addressed to the clerk to the local authority at his office or to the secretary of the company at their registered or principal office.

43. Where under the provisions of the Tramways Act 1870 and this Order any matter in difference is referred to the arbitration of any person nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to every such arbitration as if the arbitration were pursuant to a submission.

Provisions as
to arbitration.

44. From and after the acquisition by the Promoters of the existing tramways the Conveyance of Mails Act 1893 shall notwithstanding any provision in any Act or Provisional Order relating to such tramways extend and apply to such tramways as if the same had been authorised by an Act of Parliament passed after the first day of January one thousand eight hundred and ninety-three and to the Promoters as the body or person owning or working such tramways.

Carrying of
mails by Pro-
motors.

45. Nothing in this Order contained shall exempt the Promoters or any person using the tramway or the tramway from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of rates and charges authorised by this Order.

Saving for
general Acts.

SCHEDULE.

RATES AND CHARGES FOR ANIMALS GOODS &c.

<i>Animals.</i>			Per Mile.	
			s.	d.
For every horse mule or other beast of draught or burden	per head		0	4
For every ox cow bull or head of cattle	...	..	0	3
For every calf pig sheep or other small animal	...	..	0	1½

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A.D. 1904.	<i>Goods and Minerals.</i>	Per Mile. s. d.
<i>Wardle Urban District Council.</i>	For all coals coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways per ton	0 2
	For all iron iron-ore pig-iron bar-iron rod-iron sheet-iron hoop- iron plates of iron slabs billets and rolled-iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought-iron not otherwise specifically classed herein and for heavy iron castings including railway chairs per ton	0 2½
	For all sugar grain flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings per ton	0 3
	For cotton wools drugs and manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein per ton	0 4
	For every carriage of whatever description	1 0

<i>Small Parcels.</i>	Any distance. s. d.
For any parcel not exceeding seven pounds in weight	0 3
For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight	0 5
For any parcel exceeding fourteen pounds but not exceeding twenty- eight pounds in weight	0 7
For any parcel exceeding twenty-eight pounds but not exceeding fifty-six pounds in weight	0 9
For any parcel exceeding fifty-six pounds in weight but not exceeding five hundred pounds in weight such sum as the person conveying the same may think fit:	

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

<i>For the Carriage of Single Articles of great Weight.</i>	Per Mile. s. d.
For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage exceeds four tons but does not exceed eight tons such sum as the person conveying the same may think fit not exceeding per ton	2 0
For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage exceeds eight tons such sum as the person conveying the same may think fit.	

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Regulations as to Rates.

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For articles or animals conveyed on the tramway for a less distance than a mile rates and charges as for one mile may be demanded.

A fraction of a mile beyond an integral number of miles shall be deemed a mile.

For a fraction of a ton rates and charges may be demanded and taken according to the number of the quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

With respect to all articles except stone and timber the weight shall be determined according to imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

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